Taberg Girls
The Money, the People, and the System Behind Their Journey

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The Complete Dossier — companion to the book Taberg Girls & Their Journey

Completed October 27, 2026 · Built from 87 rounds of documented research · Every factual claim carries its source.

What "87 rounds" means, exactly and simply. This document wasn't written in one pass. It was assembled in rounds — and a round is easy to picture. Each round, the researcher picked one target (a budget line, a contract, a court docket, a county's own plan), searched every reachable public source for it, saved whatever was found — including the dead ends — into a growing working file, and then reported "done." Then the next round began on the next target. Eighty-seven of those sessions, run one after another, produced the working record this document was then built from. So when you see "87 rounds," read it as: eighty-seven separate documented digs, each one small enough to verify on its own, stacked into the pile of evidence that this document organizes. Nothing in it comes from memory or assumption; if a claim can't point back to one of those rounds and the document it produced, it doesn't appear. Allegations are told as allegations, findings as findings, acquittals as acquittals, and dead ends as dead ends — because in an honest investigation, even a false lead is evidence.

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HOW TO READ THIS

This is a long document, but it's built to be read the way a friend would tell you the story — start at the beginning, and by the end you'll understand the whole thing. Let me give you the map before we start walking.

What this is. There's a building in upstate New York — a state facility for girls, in a tiny hamlet called Taberg. It's the last locked door in the whole state for girls who get committed by family court. This document is the most complete account that can be assembled from public records of that building: who was inside it, who ran it, who watched it, what it cost, and what happened when things went wrong. It's long because the record is long. Take it in pieces.

How we know what we know. Throughout, you'll see little tags after claims — **(S)**, **(A)**, **(B)**, **(NA)**. Think of them as how much you can trust the source. **S** means a primary government document or a court record — the strongest stuff, the paper the state itself filed. **A** means official-adjacent: legislative testimony, audited reports, budget analyses by established research groups. **B** means solid secondary reporting or nonprofit research. **NA** means aggregator or unverified material — used only when flagged, never load-bearing. Where the record runs out, the document says so, and points to exactly how to finish the job.

The tone. This document doesn't take sides. It's not out to get anyone, and it's not out to excuse anyone. It quotes the state's defenders and its critics at equal length. When the state's own paperwork contradicts the state's own public statements, both are quoted, and you're left holding the arithmetic. That's the whole trick: show the paper, name the people, and let you decide.

The dead ends. Two leads in this research turned out to be false — an aggregator's claim about a $4.2 million contract, and

some IRS records that turned out to belong to the wrong "Rising Phoenix." Both are preserved in Part IX, because a false lead is evidence too: it shows where the light was pointed.

The alphabet soup, translated. Every abbreviation in this document, in plain words:

- **OCFS** — the New York State Office of Children and Family Services, the agency that runs the facility. **DJJOY** — its juvenile-justice division, the part that runs the facilities.
- **PINS** — "person in need of supervision," the old legal label for a kid who hadn't committed a crime but was deemed ungovernable — usually a runaway. **JD / JO / AO** — the levels of juvenile charges, from family-court delinquency up to the serious offenses.
- **Title IV-E / IV-B** — the federal foster-care money. IV-E is the big open-ended entitlement; IV-B is capped. **CWS / PSSF** — IV-B's two parts.
- **TANF** — federal welfare block grant. **SSBG** — the Social Services Block Grant. **FFFS** — New York's Flexible Fund, the TANF-funded slush channel (and "EAF" is its emergency-assistance sub-channel). **FCBG** — the Foster Care Block Grant.
- **RTA** — the 2017 Raise the Age law. **STSJP** — the state's diversion program, the money meant to keep kids out of facilities. **JJAG / SAG** — the state board that approves the federal juvenile-justice plan.
- **OJJDP** — the federal juvenile-justice office. **BJG** — the new Bureau of Justice Grants. **PREA** — the Prison Rape

Elimination Act, whose audits appear all through Part V.

- **OSC** — the State Comptroller, the auditor. **OGS** — General Services, the purchasing office. **DASNY** — the Dormitory Authority, the state's builder and bond-issuer. **DOB** — the Division of the Budget, the governor's budget office.
- **YDA / AOD** — Youth Division Aide, the frontline staff job; AOD is a supervisor designation in the incident reports. **FTE** — full-time-equivalent staff.
- **ADM / LCM** — the agency's numbered directives: Administrative Directives (statewide policy) and Local Commissioners Memoranda (county instructions). **BBM** — the Bureau of Budget Management, the rate-setters. **PPM** — an internal procedures manual.
- **CSE** — the Committee on Special Education, the school body that handles special-ed plans. **LEA** — the school district.
- **JDAS** — the juvenile-detention claims system counties bill through. **ACS** — here, the Automated Claiming System (not the city agency). **OTDA** — Temporary and Disability Assistance. **OER** — Employee Relations, the state's labor negotiator.
- **OMH / OPWDD / OASAS / DOCCS** — the mental-health, developmental-disability, addiction, and prison agencies, named in the union contracts.
- **RNR** — risk-need-responsivity, the standard "match the service to the kid's risk" framework. **PbS** — Performance-based Standards, a national data program. **CCWIS** — the federal child-welfare data mandate. **MOU** — a

memorandum of understanding.

- **ROS** — "rest of state," meaning upstate, as opposed to the city. **NPS / PS** — non-personal services / personal service, the two halves of a budget. **TII** — the Targeted Inflationary Increase, an annual ratchet.
- **$ / K / M / B** — dollars, thousands, millions, billions.

The story itself. At the very back, in the Appendix, there's a narrative — one continuous telling of a girl's path through this system, start to finish. It's a composite: every single detail comes from a documented case file, but no one real girl's file contains all of it, and the document says so right on its face. It's the only section that reads like a story, because it *is* the story. Everything else is the record that story is built from.

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EXECUTIVE SUMMARY

Let me tell you the shape of the whole thing before we walk through it door by door. Once you have the shape, the details will stick.

It starts with a building. In 2011, New York State closed the last facility it had ever built specifically for girls, and moved twelve girls — on a single August day — into a building that had never been designed for them: a former boys' school, sitting on a campus in a hamlet called Taberg, in the town of Annsville, Oneida County, about 250 miles northwest of New York City. That's where nearly every one of those girls came from, and it's where their families stayed. That building is now called the

Taberg Residential Center for Girls, and at the time of this writing it is the only limited-secure placement in the entire state for girls — the one locked door a family court can open when a girl needs more structure than a group home. One building. One door. Nineteen million people.

The girls. Part II is who those girls are, and here's the part that stays with you: year after year, the federal court monitors — the people the Justice Department sent to watch these facilities — wrote down the same picture. Teenage girls. Overwhelmingly survivors of documented abuse. Overwhelmingly in foster care or county custody. Medicated at rates that made even the monitors pause. Sent 250 miles from home for charges like criminal mischief, shoplifting, and probation violations — the file itself catalogs the offenses. Around them grew an operating rhythm the monitors documented in number after number: hundreds of physical restraints a year in a building of twenty, suicide watches in the dozens every month, clinical jobs sitting empty for seasons at a time. None of that is characterization. It's the record, with the girls' own quoted words preserved in it.

The people. Part III names everyone — all four commissioners across the relevant decades, the facility's directors, the Albany officials who set policy, the contract managers and accountants through whom every dollar passes, the union presidents on both sides, the judges and monitors and auditors and advocates, and the defendants in four separate lawsuits. One rule is followed to the letter: an allegation is called an allegation, a finding is called a finding, an acquittal an acquittal, and a conviction a conviction. Nobody gets a status

the record doesn't give them.

The money. Part IV is the longest part, and I'll tell you why: money is the single most documented thing about this facility. Every layer is traced, from origin to use. The federal layer — the laws that send billions to child welfare nationwide, and the one specific exclusion that sends nothing to delinquency facilities, so the same girl draws a federal match through one door and nothing through the other. The state layer — a $171,441,000-a-year budget line, reconciled to the cent; a per-diem chargeback that climbed to $2,444.44 a day; and a 2015 law that caps everything the counties collectively pay at $55 million a year. That cap is a genuine discovery: it means the famous per-child price is partly arithmetic and partly billing theater, and the state's own directives say so. The diversion layer — every community-services program the state runs, with its exact allocation, set against the facility line in one table: roughly six cents of prevention per dollar of institution. The payout layer — every contract, vendor, hourly rate, and pay schedule the money becomes: the psychiatrist at $399 an hour, the nurse agencies at documented premium rates, the food distributor by name, the water-plant operator, the vending machines that send the facility its only documented revenue. And the capital layer — bonds, a mechanism that lets the state seize county aid over unpaid construction bills, and a $245 million new detention build proceeding at 82 percent state share while services money sits unspent.

The oversight. Part V is every watchman, and it holds two findings that surprised even the researchers. First: the facilities

pay for their own inspections — all nine, all three PREA cycles, every audit paid by "the audited facility or its parent agency." Second: each audit's window closes before the scandal it would have caught becomes visible — the facilities read clean in cycles that precede their own scandals, every time.

The cases. Part VI tells the lawsuits as stories. A 2009 class action that reformed the boys' system and settled for millions — including $3.5 million for one death. The Taberg survivors' case, still moving through court, proceeding against three individual former aides after the constitutional shield kept the state itself out. A January 2026 class action over solitary confinement whose complaint names the staffing shortage itself as the mechanism. A fair-hearing case built out of the state's own backlog statistics. And the criminal ledger, including a psychologist's conviction in August 2026 and a court date in November.

The arithmetic's verdict. Not argued — shown. A community-based limited-secure placement in New York City costs $486,000 per bed per year; the state facility bills $892,000. The per-child price rose eightfold in eleven years while the population collapsed — a mechanical result of dividing fixed costs by shrinking numbers, documented in the rate-setting directives themselves. You finish Part IV having seen every number in the state's own hand.

And the stance, one more time. This document doesn't ask you to condemn anyone. It quotes defenders and critics at equal length, documents the reforms that were real, and says plainly — in Part VIII — which questions closed and which remain open.

Part IX preserves the investigation's own errors. Part X names every remaining gap and the exact route to close it.

It's long because the record is long. Come on in — we'll start with the building.

PART I — THE PLACE

1.1 What the building is

Picture a campus, not a prison — that's the first thing to get right. The Taberg Residential Center for Girls stands at 10011 Taberg-Florence Road, in the hamlet of Taberg, town of Annsville, Oneida County, New York. The state agency that runs it — OCFS, through its juvenile-justice division, DJJOY — calls it a twenty-four-bed limited-secure facility. "Limited-secure" is the security level just below full lockdown: locked doors and controlled movement, but not the maximum-security tier. It holds girls committed by state family courts, and it's built around two units in one building — a thirteen-bed limited-secure unit and an eleven-bed mental-health unit. That second unit matters more than its size suggests: it is the only mental-health unit for girls in the entire state (S: OCFS facility page; the federal monitoring reports).

The school has its own building on campus — everyone calls it the Annex. The campus also runs its own little infrastructure, which tells you something about what kind of place it is: a state-registered laboratory that tests for drugs, pregnancy, strep, flu, and blood-alcohol; eye care on site; dental care contracted out locally; a kitchen supplied through the state's

bulk food program; and its own water-supply plant — the kind that legally requires a certified Class C water-treatment operator on contract (S: the state health department's facility registration; OCFS procurement records, IFB 1242). Small campuses don't usually have their own water plants. This one does, and we'll come back to why that matters when we talk money.

And here is the fact everything else hangs on: Taberg is the only limited-secure program for girls in New York, and the only one with a girls' mental-health unit. When a girl anywhere in the state — Brooklyn, Buffalo, anywhere — needs more structure than a group home can give her, this building, or its sister facility in Auburn (the Harriet Tubman Residential Center, twenty-five beds), is the entire map. That's not rhetoric. That's capacity.

1.2 How it came to be a girls' facility

Now here's the part that took some digging, because the building didn't start as a girls' facility, and it didn't start recently. The institution this campus belongs to is eighty years old, and its family tree is documented (S/B: the state's Division for Youth master plan of 1985, archived by the National Criminal Justice Reference Service):

- **1945** — the state creates a Youth Commission by law.
- **1960** — that commission becomes the Division for Youth, with a new job added: develop alternatives to warehousing kids in training schools.

- **1971** — the training schools themselves move under the Division for Youth.
- **1985** — the Division for Youth writes its master plan, and that document is a time capsule. It describes a system of eight secure centers — 517 beds, of which 86 percent hold kids from New York City, with not a single direct-admission secure bed in New York City itself. It describes nine limited-secure facilities, of which exactly one serves girls — with, and this is the plan's own phrase, "substantial waiting lists at existing female facilities." And it records a $27 million capital construction boom, driven by a 1978 law aimed at juvenile offenders. Taberg appears in this 1985 document as a Division-for-Youth-era address.
- **1996** — the Division for Youth merges with the child-welfare side of the Department of Social Services, and the modern OCFS is born.
- **August 31, 2011** — after Governor Andrew Cuomo announces the closure of Tryon Girls Center that June, twelve girls are moved from Tryon into the converted Taberg Boys campus. The staff come mostly from Tryon, Annsville, and Tubman (B: the federal monitoring reports).

Sit with that 1985 document a moment, because the pattern it records never went away. In 1985, girls were scarce in the system — one limited-secure facility for the whole state, waitlists on record — and the answer wasn't to build for girls. The answer was to add beds at a boys' facility. In 2011, the same thing happened again: close the girls' facility, move the girls into a

repurposed boys' campus 250 miles from home. The girls' network that exists today — Taberg and Tubman, forty-nine beds between them — is the descendant of that design choice, made four decades ago, and remade every time the system consolidated.

1.3 The census, documented

The population was never large, and here's the series, source by source, so you can watch it hold steady while everything around it changed (S/B: the monitoring reports; the school profile compiled from federal data):

- **August 20, 2012:** eighteen girls — nine on the mental-health unit, nine on the other. Ages thirteen to seventeen. Lengths of stay from fifteen to 328 days. Half the population had arrived within the previous two months. That last detail is churn, and you'll see why it matters later: a building where half the residents are new every two months can't build the relationships treatment depends on.
- **April 2015:** seventeen girls — plus one more name on the roster the facility couldn't account for, because she had absconded from court. A fugitive on the census.
- **November 2015:** seventeen girls, and here's the number that alarmed the monitors: seven of the seventeen — 41 percent — had been through Taberg before.
- **August 2020, at the sister facility:** Tubman held eight girls under forty frontline staff. Eight girls. Forty staff. A five-to-one ratio in the COVID window.

- **2024–25 school year, today:** twenty-one students. Ninth grade twelve, tenth four, eleventh two, twelfth three — a hundred percent female, 48 percent Black, 40 percent white, 12 percent Hispanic, scoring right at the state-average line on the tests. And the whole statewide system of facility schools — eight schools across the entire OCFS network — enrolls 389 students. Total.

The grade spread tells its own story. Twelve freshmen means more than half arrived within the past year or two; the three seniors are the long-stayers. Historically, stays ran anywhere from nineteen days to 460 days, averaging about five months — long enough to lose a semester, short enough that by the time a girl trusts a clinician, she's often gone.

1.4 Where it is, and what surrounds it

Taberg the hamlet is about 3,850 people (B: census-based data). Per-capita income runs $29,040 — against a national figure more than double that. About one resident in nine has a bachelor's degree, and roughly a third of the housing stock is mobile homes. And here's a census quirk worth knowing: 8.8 percent of the neighborhood's residents are counted as living "in a correctional facility" — the campus population folded into the hamlet's own count. The institution is, quite literally, the biggest population the census can see in Taberg.

Now zoom out twenty-five miles and look at what's nearby: Mohawk Correctional Facility in Rome. Mid-State Correctional Facility and the Central New York Psychiatric Center in Marcy. The Oneida County Jail in Oriskany. Taberg sits inside a cluster

of state prisons, a county jail, and a psychiatric center — and it is the only one of them holding children. The county's own detention building dates to 1975 (B: the county sheriff's history).

And the local papers? The Utica Observer-Dispatch covered the facility's worst documented weeks, and we'll quote it when we get there. The Rome Sentinel — the hometown paper — has published, across every year this file could search, essentially nothing about the $171 million institution in its own hamlet; its Taberg coverage is fire-district news. That silence turns out to matter, and Part IV will show you exactly how.

1.5 What the campus costs to keep standing

Before we ever talk about the operating budget, look at what it takes just to keep the physical plant going — because the campus generates a continuous, itemized stream of construction and maintenance projects, and that stream tells you the single most important thing about this system's economics: the costs don't shrink when the population does (S/NA: New York State Register advertisements; the state contracting office's project records):

- **2013** — sewage plant upgrade and site work; security modifications (construction and electrical contracts, let separately). This is the retrofit of the boys' campus into a girls' facility.
- **January 2017** — a new emergency generator for the main building, estimated $100,000–$250,000, bid bond $16,900.

- **September 2017** — the parking lot: rehabilitate it and add spaces, estimated $500,000–$1,000,000, bid bond $34,000. Sit with that one. A campus licensed for twenty-four beds, holding twenty-one girls, put a half-million-to-million-dollar parking project out to bid. That's not an accusation; it's a procurement record.
- **August 2020** — a campus-wide digital radio system.
- **2023** — graphic design work for the Annex school building.
- **January 2025** — a live pre-bid meeting held at the facility, project still unidentified in the public record.
- **2026** — a statewide "enhancement programs" procurement naming Taberg; a five-year contract for the certified water-treatment operator the campus's own plant legally requires.

Every project above was bid through the state's Design & Construction office on the agency's behalf. The award amounts for the individual projects aren't posted in searchable form — the route to them is a records request, and it's in Part X — but the point the ledger makes doesn't need them: the campus eats infrastructure continuously. Its water, security, power, and parking costs run every day of every year, whether seventeen girls are inside or twenty-one. Hold onto that thought. It's the seed of the single biggest money finding in this file.

PART II — THE GIRLS

This is the heart of the whole file, so let's be careful here. Everything in this part comes from the federal court monitors' own reports — the people the Justice Department sent, year after year, to write down what they saw. They wrote person-level profiles, using initials to protect identities, and this part tells you what they recorded. Nothing here is reconstructed, imagined, or merged beyond what the reports themselves did.

2.1 The documented cohorts

Start with the numbers, because the numbers set the stage. The monitors' April 2015 census: seventeen girls, ages fourteen to seventeen, in residence anywhere from nineteen days to 460 days. Now look at what they were actually sent there for (S: the 22nd and 23rd monitoring reports). The sentence catalog for the cohort of eighteen the monitors documented: criminal mischief (five), possession of stolen property (three), assault (two), weapon possession (two), petit larceny (two), resisting arrest (one), trespassing (one), false impersonation (one), probation violation (one).

Read that list again. The most common conviction among girls in a facility under federal oversight for use of force — federal oversight, meaning the Justice Department had already found the harm risk unacceptable — was criminal mischief. That's property damage. Broken windows, marked-up walls. That's what the docket looked like.

Now their health. In that same snapshot, all but two of the eighteen had psychiatric diagnoses — mood disorders, conduct disorder, depression, anxiety, bipolar, impulsivity, post-traumatic stress. Sixteen of the eighteen were on psychotropic medication; eight were on two or more at once. The pharmacy list reads like an adult inpatient ward: Seroquel (seven girls), Abilify (four), Zoloft (three), Trazodone (two), Prozac (two), Depakote (two), Remeron (two), plus lithium, Lexapro, clonidine — and clozapine, which psychiatrists reach for when nothing else works, plus Cogentin, which exists to manage the side effects of the antipsychotics themselves. The agency's own system-wide numbers frame it: 42 percent mood disorders, 21 percent attention and activity disorders, 17 percent sleep disorders — and 87.5 percent of the Taberg girls surveyed were on medication. Nearly nine in ten.

2.2 The individual profiles, as documented

Numbers can't carry this alone, so here are the people the monitors wrote down. Take them slowly.

The seventeen-year-old with the highest restraint count. Five months inside. Her mother — addicted, incarcerated — had disappeared from her life years before; the file says "long foster care history," which means a relay of placements, each one ending. She was hospitalized twice in 2013 for cutting. She drank, used pills, smoked. She ran from her second residential placement, and the system responded the way the system responds: DSS sent her to detention, and detention sent her here. Her own word for how she arrived: "hopeless." She had the

facility's highest restraint count that month, plus several suicide watches. Staff described her as "so easily triggered" she couldn't engage with programming. Her survival plan, in her own file, in her own words: stay off drugs — "I ran away from problems. Drugs made me not think about anything." Her father was fighting to stay in her life by phone — his home was approved for her return but rated high-risk, because he worked twelve-hour days. Her incarcerated brother's calls into her treatment meetings had to be arranged by a clinician. She hoped to work on her father's farm.

The fifteen-year-old rape survivor released back into the abuse household. Admitted July 2014. Held nine months — and her release was *delayed*, because her stepfather, the man she reported had raped her, still lived in the home she'd be released to. Her file is explicit: her behavioral problems — the running, the lying, the "ungovernable" label, the school suspensions — began "around the time that she reported being raped by him." Child Protective Services had a plan: he wasn't supposed to be alone with her siblings. She was released anyway, on her mother's assurance that he'd moved out. And her full trauma history — the domestic violence she'd grown up inside, the documented physical and sexual abuse — was compressed by the people writing her discharge plan into the phrase "It is alleged that…"

The sixteen-year-old with Fetal Alcohol Spectrum Disorder, committed over $7.56. Placed at Taberg in April 2015 for violating probation by stealing candy and juice worth $7.56 from a grocery-store playroom. FASD: facial features and

nervous system marked by prenatal alcohol exposure, low verbal comprehension, executive-function deficits — the file's plain description is that she struggles to organize a task the way most people do automatically. In residential placement since age thirteen. The monitors' verdict: she "is not a typical delinquent" and belonged in a trauma-specific program, not a secure facility.

The developmentally disabled fifteen-year-old functioning "like a five-year-old." In DSS custody. Eligible for developmental-disability services. Psychiatrically hospitalized at least seven times between 2007 and 2014. When told "no," she threw herself on the floor. The facility's answer, documented: the director gave her a doll to care for, and coloring became her program. And the reason she was *there* at all? The Department of Social Services had asked every agency it could find — in state, out of state — to take her, and every one declined, citing her aggression. OCFS's own position, stated to the monitors: the court had committed her, and OCFS "cannot refuse intakes." She was too damaged for anyone to treat, so the system that couldn't place her confined her.

SM, fifteen, whose restraint record is a biography. Eight restraints in five months, and the file's own words are "no apparent pattern" — except the pattern is that the plans kept failing. A twenty-three-minute supine restraint her own individual intervention plan said should never be used on her. A forty-four-minute restraint with handcuffs the day after she arrived. Standing holds, escorts. Her file is the clearest documented case of a girl being physically controlled, repeatedly, under written plans that already said the method

being used was wrong for her.

AF, the education-neglect case. A tenth-grader reading at seventh-grade level, doing math at sixth — with no special-education services at all, inside a facility that generates its own special-education evaluations. Her test results never reached her release-planning team. Her psychiatrist had documented depression, hopelessness, and worthlessness three weeks before her team planned her school placement — and none of it was mentioned.

And the relay, as one timeline. One girl's documented sequence: mother disappears; placed with a grandmother at five; moved to a relative who abused and neglected her; into foster care at ten; returned to the abuser as a teenager; then Taberg. Each of those moves has a file number somewhere. None of them has an explanation.

2.3 The conditions of daily life, as measured

So what was a day like? The monitors measured it, and here's the rhythm they documented (B/S: the 22nd through 24th monitoring reports). Hold these numbers loosely at first, then tightly:

- **Restraints.** One documented year's data, projected forward: 746 restraints, 57 uses of handcuffs, 70 youth injuries — for a population of about twenty. That's a restraint roughly every nine days per girl-year. The average "stabilization" time was 9.9 minutes, but the events the monitors watched on video ran 52 and 53 minutes. Between 75 and 89 percent of restraints each month were staff taking

sharp objects away from girls trying to hurt themselves. Read that again: the restraint system *was* the suicide-response system. In one month, March 2015, four girls accounted for forty of the sixty-eight restraints. Suicide watches ran eight to twenty-eight per month — and roughly 180 special-supervision watches in a single six-month stretch, about one new watch every single day. In one event packet, the monitors' video review found five girls restrained in a single connected series.

- **Safety.** Four of five girls interviewed said they'd been assaulted or threatened. The girls' own survey numbers from August 2012: 71.4 percent had been in a fight in the prior six months; 42.9 percent reported property stolen by force; 28.6 percent said they'd been beaten or threatened. And three of five restrained girls told the monitors they believed staff tried to hurt them during restraints; two said they were injured. (For completeness: in the 2012 record, 67 percent of interviewed staff reported having been investigated for abuse or excessive force — the mirror image of the same turbulent building.)
- **The staff side.** The same reports record the staff in their own words: "exhausted," "burned out," "stressed," "low morale," "stretched too thin." A teacher: "No point in calling a code; there is no one to respond!" A manager: "There is no cavalry coming; you must save yourself." Eight of the twelve staff interviewed were on workers' compensation. And for four straight months, only two of the seven clinical positions

were filled — two clinicians, for twenty-plus actively suicidal, medicated, traumatized teenage girls.

- **The plans.** The girls' individual intervention plans — the documents meant to keep them safe — were written in boilerplate: "Offer Time Away." "Distract by talking." "Isolate." The girls' own documented de-escalation language, written in the same files: "Hold my stuffed bunny." "Tell myself I have self-control." Nobody had asked them; the boilerplate said what the boilerplate says.
- **One bright protocol.** The monitors did flag an exemplary practice, and fairness requires it: the post-restraint privacy protocol. When a girl had just been restrained and a monitor wanted to hear her account privately, the facility ran a script — radio static, a door held six inches from shut, staff positioned to kill sight-lines — so she could speak without being seen or overheard by the people she'd just accused or been restrained by. It was the one moment in the operating day designed entirely around her voice.

2.4 What happens after

Discharge, as documented, runs two ways. The first: back to the household where the abuse occurred, on a parent's assurance — the fifteen-year-old's story above is not an exception; it's the documented pattern. The second: back to Taberg. The returnee rate hit 41 percent in one cohort — seven of seventeen girls had already been through. The monitors wrote, in a formal finding, that this was unacceptable; the statewide three-year rearrest rate for girls released from state custody has been documented at 45 percent. So the off-ramp the state built — community placement — is the subject of Part IV's final comparison, where the two prices sit side by side: $486,000 a bed in the community, $892,000 in the facility. You can probably guess which one the girls rarely get.

2.5 The funnel, in one breath

Here's the whole machine in a single paragraph, and notice that not one clause in it is interpretation — each is a documented fact, sourced in the parts ahead. A girl survives violence at home. The city removes her. Foster placements fail — hers or the system's. Her symptoms — running, fighting, cutting — get read as delinquency rather than trauma, because the system that receives her was built for delinquency. Family court sees a probation violation, not a psychiatric chart. The court commits her to the state. And because the state never built community secure capacity for girls — never, in forty documented years — the commitment lands her in a converted boys' school 250 miles from home, where the restraint system functions as the mental-health crisis response, where the psychiatrists were part-time until the state started paying agency rates, and where her schooling gets billed back to the district she came from. That's the path. Part IV prices it.

PART III — THE PEOPLE

Systems don't do things; people do. This part puts names to the record — everyone who appears in it, organized by where they sat. One ground rule runs through the whole part, and it's worth saying out loud up front: in the sections that follow, several former employees appear as defendants or in complaints. Being named in a complaint is an allegation, not a finding. An "unsubstantiated" outcome is a failure-to-find, not an exoneration. A conviction is a conviction. Each person's status is stated exactly as the record holds it — never more, never less. It is organized by role. **A necessary note on the accused:** in the litigation sections that follow, several former employees are named as defendants or in complaints. Being named in a complaint is an allegation, not a finding; being "unsubstantiated" is a failure-to-find, not an exoneration; and a conviction is a conviction. Each person's status is stated precisely as the record holds it, and nothing more.

3.1 The commissioners

- **Gladys Carrion** — commissioner from January 2007 (Spitzer appointment) through the 2014 crisis window. Presided over the census cut from roughly 1,500 to 755, the camera installations, and the period of the DOJ investigation. On the record (New York Times, December 15, 2009): "I have people on staff that have two, three, four, five cases of abuse or inappropriate restraint, and I can't get rid of them." CSEA publicly called for her dismissal in January 2012 over facility safety. Later described the facilities as a "toxic environment."
- **Sheila Poole** — acting commissioner from 2014, confirmed 2019, departed December 2022. Her signature appears on the March 2016 per-diem rate directive — during the exact window the Taberg abuse litigation now covers. Presided over the Columbia Girls closure, the restraint-rule rewrite, and the CCWIS decision era.
- **Suzanne Miles Gustave** — acting commissioner through 2023; her confirmation window closed in March 2024.
- **Dr. DaMia Harris-Madden** — acting from April 8, 2024; confirmed May 16, 2024; incumbent. Credentials: Ed.D., MBA, M.S. Background: six years as executive director of the Westchester County Youth Bureau, president of the Hudson Valley Association of Youth Bureaus, Mount Vernon government service; approximately twenty years in nonprofit and grant-writing work. Press-noted at appointment: no direct child-welfare agency experience. Endorsed publicly by Children's Village president Jeremy Kohomban, Senator

Jamaal Bailey, Senator Shelley Mayer, and Senate Majority Leader Andrea Stewart-Cousins ("cherished friend"). She is the named defendant commissioner in the 2026 solitary-confinement class action and the 2026 fair-hearing case (both described in Part VI).

3.2 The DJJOY leadership benches

Home Office, 2012 (from the monitors' own meeting roster): Felipe Franco (Deputy Commissioner), Ines Nieves (Associate Commissioner), Dr. Joe Tomassone (Chief of Treatment Services), Dr. Michael Cohen (Medical Director), Larry Gravett (Director, Special Investigations Unit), Jim Barron (Director, Labor Relations), Merle Brandwene (Management & Program Support), Pam Kelly (Bureau of Training), Sandra Carrk (Project Manager), Lee Prochera (Deputy Counsel), John Canino and Lou Renzi (Legal), Edgardo Lopez (Settlement Agreement Coordinator).

Current bench (2024–2026, from the agency's organizational documents): DJJOY Deputy Commissioner **Norman W. Hall** (appointed August 2024; twenty-five years with the Greenburgh Police Department before appointment). Administration and Finance Deputy Commissioner **Sharon Devine**; Associate Commissioner **Jill Dunkel** (signature on the federal Title IV awards memoranda, the Foster Care Block Grant letter, the SSBG allocation, and the Chafee directive — the financial pass-through signature). HR Deputy Commissioner **Tonya Boniface**. Public Information Director **Jennifer Whitson** (the agency's voice in the solitary litigation). Youth

Development and Partnerships for Success Deputy Commissioner **Nina Aledort, Ph.D., MSW** — signature on the detention-allocations, STSJP, RHY, Safe Harbour, YSEF, YTS, and YDP memoranda: the entire community-side program family runs through her division and the Bureau of Youth Development and Well-Being. Associate Commissioner **Joan Gardner** (former NYC Probation deputy commissioner); **Laura Darman** (new executive director, 2025–26); **Beth Tailleur** (Commission on National and Community Service executive director). New in 2026: **Kirk McLean**, Director of Project Management and Continuous Improvement (executive office, from September 10, 2026; prior municipal open-data background logged as a candidate match, not confirmed); **Christopher Schall**, Director of Audit and Quality Control (appointed February 2024; career auditor, most recently Saratoga County; salary documented at $154,500 in 2024 and $159,135 in 2025).

The financial spine, by name: Derek J. Holtzclaw — Associate Commissioner for Financial Management (2016 rate directive) through Deputy Commissioner for Administration (2021 rate directive). Kathleen Griffin — placement-data desk, present in the 2016, 2021, and 2026 rate directives. Hyeyoung Kim (rate setting, 2021) succeeded by **Edward Tang** (rate setting, 2026). Ken Norris (rate setting, 2016), Michael Christian (payments, 2016). **Shonna Clinton**, Local Operations Manager — the contact of record on the Raise the Age claims memorandum, the SSBG allocation, and the Chafee directive. **Karen M. Williams**, Principal Accountant, Bureau of Budget Management — the voluntary-agency rate-consultation

gatekeeper. **Keegan Burke** (STSJP reviewer and certifier of county plans; certification initials IT4541 visible on the Albany County plan) and **Lynn Tubbs** — the diversion-program desk.

3.3 The facility's own leadership, era by era

- **Lori Clark** — Acting Facility Director, 2011–2012; jointly credited with the facility's only documented turnaround.
- **Sussana "Sue" Tillino (also rendered Tulino)** — Assistant Facility Director (2012), credited in the monitoring reports with adding structure, order, and activities to the unit; a resident's quoted verdict from that era: "Things were so negative and boring during previous times that restraints were seen as a form of activity." Later the facility's site director — the supervisor of record in the abuse litigation. The juxtaposition is documented, not interpreted, here: the same name appears in the turnaround credits and in the supervisory chain that the litigation's plaintiffs fault.
- **Facility director, 2015** — unnamed in the report; the monitors recorded that the facility manager was "building a case to remove the FD," who resigned effective May 15, 2015.
- **Dr. Gale Asch** — Assistant Facility Director, Treatment (2012). **Beverly Sowersby** — Facilities Manager. **Edgardo Lopez** — Settlement Coordinator (also on the Home Office roster).
- **Christopher Bolinski** — the current director of record on OCFS's facility page.

- **Dr. James T. Horne, D.O.** — Director (medical), state-registered through July 22, 2027; the current named medical face of the facility.
- **Mark Cattalani** — OCFS contract manager for the facility's psychiatry contract (named on the 2021 award list with the facility address).
- **Dr. Glindmeyer** — the consulting child psychiatrist whose findings the monitors adopted: facility psychiatric assessments "not consistent with generally accepted standards… lacked detail, over-relied on checklists, and did not include appropriate case formulations or treatment recommendations." His sleep-hygiene recommendation stood against the facility's Trazodone habit.
- **Ron Rutledge** — STARS training-records custodian.

Debra Peete, Norm Tillery, Onna Cooley — Bureau of Training staff who demonstrated the redesigned handcuffing strategy (pending medical-credential sign-off as of the 2012 report). The monitors' 2012 leadership roster preserved, for the record: Rebecca Roberts (youth counselor); Audrey Kurtz, Ruth Mosher, and Jane Wenham (registered nurses); Julie Noti and William Gillman (social workers); Paul Piersma (alcohol and drug services); Chuck Olson (education); Diane Deacon (legal); David Bach (quality assurance director); Edith Abete and Bruce Warcup (youth division aides, second class); Andre Cuela (social work); Janice Curren (parent advocate coordinator); Dan Bareiss (cook); Augustine Amissah, Jenne Utting, and Denise Passarello (quality

assurance); and Patricia Randall (secretary).

3.4 The unions and their presidents

- **CSEA** (Civil Service Employees Association) — represents the direct-care workforce. President **Danny Donohue** (2010–2012 era; his phrase "administration-facilitated sex party" entered the record over the 2010 Tryon incident). Current president **Mary E. Sullivan** (2026 agreement). The 2012-era local representative appears in press coverage as "Kotzin" (first name not retrievable — logged, not guessed). Michael Geraghty — Tryon staff of twenty-seven years and local union president, quoted blaming downsizing and shortened stays for facility violence.
- **PEF** (Public Employees Federation) — represents nurses, clinicians, social workers, and teachers. President **Kenneth Brynien** (2010-era: "PEF has been documenting injuries to our members at OCFS facilities"). Current president **Wayne Spence** (2026); Vice President **Randi DiAntonio** ("when you don't have adequate staff, you have to rely on all these other tools" — the 2026 scanner-hearing formulation).
- The documented union record, in brief: the 2012 Workplace Violence Prevention Act complaint over Taberg; the fight against the 2021 closures ("hundreds of jobs saved," Senator Skoufis's phrase); the June 2025 letter to lawmakers describing Industry's conditions that triggered the solitary-confinement litigation; the $10 million scanner request; and the 2025 precedent of $50 million for DOCCS

scanners and cameras following the correction-officer work stoppage.

3.5 The legislators, judges, and monitors

- **Federal judges:** Judge Brenda K. Sannes (original 2020 Taberg suit, 1:20-cv-01195-BKS-CFH, with Magistrate Christian F. Hummel); Judge Glenn T. Suddaby (the 2024–2026 action, 6:24-cv-01091, with Magistrate MJK). The 2010 federal settlement (United States v. State of New York, 1:10-cv-00858, Northern District of New York).
- **Federal monitors:** Dr. **Marty Beyer** (mental health) and Dr. **David Roush** (protection from harm) — twenty-two monitoring reports from 2012 forward on the settlement facilities, paid by the defendant state under the standard DOJ monitor-compensation doctrine.
- **State officials:** Comptroller **Thomas P. DiNapoli** — his office signs every OCP contract approval cited in this file and issued the April 2024 juvenile-justice-facilities audit (Report 2022-S-13) and the May 2025 Raise the Age spending report. Senator **Joseph A. Griffo** (R-Rome) — the Taberg-area senator, on record January 11, 2012 ("I am outraged and demand immediate steps… appalling record of injuries"); no facility-specific record found since. Senator **James Skoufis** and Senator **Mike Martucci** — the 2021 closure fight ("fought like hell"); Senator **Luis Sepúlveda** ("outrageous" per-youth costs); Senator **Zellnor Myrie** (Youth Justice Innovation Fund sponsor); Assemblymember **Andrew Hevesi**

(Children and Families chair; scanner-bill sponsor); Assemblymember **Anna Kelles**; Assemblymember **Marjorie Byrnes**; Assemblymember **Michaela Solanges**; Assemblymember **Phara Souffrant Forrest** (reinvestment); Assemblymember **Rory Lancman** (whose report documented workers' compensation incident rates at state youth residential facilities rising 33 percent in one year — the first quantification of that line). Former Senator **Catharine Young** (resignation call, 2010). Governor **Kathy Hochul**; Governor **Andrew Cuomo** (the 2011 closures and the "fully staffed but empty campus" symbol); Governor **David Paterson** (the 2009 task force whose verdict was "broken, ineffective and dangerous"); Governor **Mario Cuomo** (Executive Order 80, the federal-juvenile-justice designation that still governs, and the 1985 DFY era).

- **The task force and the press:** Jeremy Travis (chair of the Paterson task force; its number-one recommendation: downsize). The New York Times's Nicholas Confessore and Jennifer Bosman, whose 2009–2010 coverage is the birth record of the modern oversight era; the headline that belongs in this file: "For 800 Youths Jailed by State, Not One Full-Time Psychiatrist."
- **JJAG/SAG:** the machinery's legal foundation is Executive Order No. 80 — signed by Governor Mario Cuomo and continued by every successor governor — designating DCJS as the state planning agency and establishing the advisory group. **Edward Fergus, Ph.D.** — chair of the New York State

Advisory Group (the federal-juvenile-justice plan approvers). **Donte Blackwell** — Bureau of Youth Justice Services (Close to Home/detention). **Heather LaForme** — Native American Services. Named regional-office staff: Tamara Rivers (Buffalo), Anthony Sufra (Rochester), Suzanne Colligan (Syracuse), John Lockwood (Albany), Peggy Dewar (Westchester), Sandra Davidson (NYC); ACS staff Justin Gross and Michael Simon. Emily Maher (OTDA FFFS).

- **County officials: Anthony J. Picente Jr.** (Oneida County Executive since 2003 — twenty budget addresses, the facility named in none). **Colleen Fahy-Box** (Oneida County DSS Commissioner, certifier of the county's diversion plan). **Sheriff Rob Maciol** (the county-detention executive). **Rocco Pozzi** (Westchester probation commissioner). **Angel Gray** (Westchester Children's Association). County budget officials named in the Oneida address: Tom Keeler, Dmitriy Sidorevich, Anthony Carvelli, Comptroller Enessa Carbone, Clerk Mary Finegan, Board Chairwoman Mary Austin Pratt.
- **Advocates and counsel (named in the record):** Dawne Mitchell (Legal Aid Juvenile Rights Attorney-in-Charge); Emma-Lee Clinger, Kate Wood, Lisa Freeman, Antony Philip Falconer Gemmell, Kathryn Anne Wood (Legal Aid); Nancy Rosenbloom (Legal Aid special-litigation director, the 2007 era); Jessica Feierman (Juvenile Law Center); Megan French-Marcelin (NYC Youth Justice Provider Coalition); Kate Rubin (Youth Represent); Natalie Peeples (Legal Aid); Jeremy Creelan, Jacob Alderdice, Damian Williams (Jenner & Block

— partners, with associates Marielle Sanchez, Alex Ussia, Owen Keiter, Anne Warnke, Niki Wasserman, Lauren Hackett, Benjamin Rhind, Jane Mezzino, and paralegal Anastasia Swetz); the Levy Konigsberg team; Gabrielle Horowitz-Prisco (Correctional Association); Alexandra Cox (SUNY New Paltz); Jamie Fellner and Aryeh Neier and author Mie Lewis (the 2006 Human Rights Watch/ACLU report). Kristi Gleeson (SCR Director, named defendant in the fair-hearing case) and Steven Connolly (Bureau of Special Hearings Director/Chief ALJ).

- **The DOJ side:** Acting Assistant Attorney General **Loretta King** (the August 14, 2009 findings letter: conditions at Lansing, Gossett, Tryon Boys and Tryon Girls "violate constitutional standards" in protection from harm and mental-health care). And, from the 1985 master plan: DFY director Leonard G. Dunston, executive deputy Les Goldberg, planning director Roger Borgen — and, reaching deeper, the federal girls'-justice lineage's earliest New York name: Morris Silver, the state's juvenile-justice specialist at 80 Centre Street in 1980, the address that still houses the criminal-justice services division today.

PART IV — THE MONEY

Okay, this is the big part — the one the whole investigation kept circling back to. Here's the promise: we'll follow every documented dollar from where it's born to where it's spent, and at each step I'll stop and explain what's actually happening, because the system runs on mechanisms most people have never had explained to them. Nothing here requires you to know anything about budgets. If a term shows up, it was translated the first time it appeared or it's in the key up front. Where a number is an estimate rather than a document, it says "derived estimate" right next to it — and there are only a few of those in the entire part.

4.1 The federal layer

The federal child-welfare pot from which these streams flow totals $11.3–11.7 billion a year nationally, with the IV-E foster-care component near $5.4 billion (A: CRS). Let's start where the money starts, which is not Albany — it's Washington.

The federal child-welfare pot from which these streams flow totals $11.3–11.7 billion a year nationally, with the IV-E foster-care component near $5.4 billion (A: CRS). Now here's the exclusion, and it's the load-bearing fact of the entire federal layer.

Title IV-E — the entitlement that excludes the facility. Title IV-E is the open-ended federal foster-care entitlement — approximately $5.4 billion a year nationally — with a 50 percent match. Federal law, however, carves juvenile-justice facilities

out of the reimbursable definition of a "child care institution": detention facilities, forestry camps, training schools, and other facilities operated primarily for the detention of children adjudicated delinquent are excluded, under a seven-factor administrative test (S: ACF Children's Bureau policy manual). The operational expression of the exclusion sits in the state's own billing tables: the Department of Health's 29-I per-diem matrix lists children in juvenile-justice custody as "N/A" (S/NA: DOH manual). The consequence is structural and documented: the identical girl, committed through the child-welfare system, draws a 50 percent federal match in a residential treatment center; committed through the delinquency system, she draws nothing. This is not asserted as a conspiracy; it is the statute's own architecture.

New York, on the child-welfare side of that divide, claims IV-E for only 48–55 percent of foster-care care-days against a 77 percent national rate — a documented under-claiming with a documented administrative cause: eligibility determination was, as of the 2018 CCWIS assessment, a manual process (NA→S: UAlbany/CTG assessment). New York also returned its full Chafee Foster Care Independence allocation to the Treasury in fiscal 2004 — one of four states to do so — while spending half its federal out-of-home dollars on congregate care against a 40 percent multistate average (A: Child Trends; CRS).

The federal streams that do reach New York (S/A):

One table, three columns, easy to read: each row is one pipeline running from Washington to New York; the middle column is how much actually arrives each year; the right column

is what kind of money it is — capped or open-ended, prevention or compliance. Scan the middle column and hold the biggest number in mind for the comparison that ends this part.

Stream	New York amount	Character
Title IV-B (CWS $12.1M + PSSF $17.2M + caseworker visits $1.1M)	~$31.6M/yr	capped; prevention/services; 25% state match
Court Improvement Program (to state courts)	~$1.2M/yr	family-court reform
OJJDP Title II formula grant	$1,772,916 (FY25)	⅔ pass-through; compliance machinery; NY not among the five states holding most noncompliance findings 2001–2012
SSBG (Title XX)	$93,319,176 (FFY26)	$4.67M training; $66M earmarked APS/DV; **$22,653,217 the child-welfare slice**; 95 percent prior-year floor with reallocation
TANF block grant	$2,434,869,000/yr (largest state award)	up to 30% transferable; NY transfers $181.8M/yr to SSBG — second nationally, 62% of NY's SSBG child-welfare spend
Title I-D (education)	Subpart 1 (state agencies): $2,436,905→$2,511,376 (FY23–26); Subpart 2 (LEAs): $7,383,217 (FY23) declining to $6.33M (FY26)	the Annex school's federal layer; one-day annual count; 30-day-stay rule; the count mechanics penalize high-churn facilities
Chafee	$10,471,958 to LDSSs (FFY26)	80% reimb/20% match; $10K cap per youth; the 75%-contracting trigger; Safe Landings Act (Ch. 94/2025) extends family-court jurisdiction and fund eligibility to age 23
Federal Juvenile Justice account (national)	$375M enacted FY24–26; $310M requested FY27	the whole national account

Within that national account sit two named girls-specific lines (S/NA, appropriations tables): "Justice and Healing of Girls / Competitive Grant for Girls in the Justice System" — $4.5 million

enacted (the $6.5 million figure sometimes quoted is the request, not the appropriation; corrected in this file — Part IX) — and "Prevention of Trafficking in Girls," $4.0 million. The operative solicitation for the healing line specifies the scale precisely: $2.9 million total, five project-site awards capped at $580,000 each, plus $1 million for a national technical-assistance provider (S/NA: OJJDP notice). Both girls' lines combined equal 0.9 percent of one year of New York's Youth Facilities line. The federal government funds the idea of girls' healing at one-twentieth the rate New York bills for holding them; that sentence is arithmetic, not editorial.

The waiver — the city's side of the IV-E ledger. New York City ran a Title IV-E demonstration waiver from January 2014 through December 2018, trading open-ended fee-for-service matching for a fixed allocation pegged to prior-era averages (A/S: ACF and James Bell Associates evaluations). The documented results carry this file's central arithmetic in miniature: foster-care exit rates rose 9 percent and median length of stay fell (475 days against 525 in comparison), while care-day volume fell 30 percent (4.7 million to 3.3 million) and the average daily cost of all placements rose 22 percent ($107.92 to $137.98) — out-of-home expenditure savings came only from reduced quantity, because unit costs rose, "largely because of the rising costs of residential care," in the evaluators' own words. Total city child-welfare spending grew 7 percent in real terms across the period ($1.73 billion to $1.85 billion). The state side of the ledger, for scale: New York child-welfare agencies spent $2,252,174,528 in SFY 2016 — federal $807.5

million, state $1,444.6 million, an unusually state-heavy split against national norms; IV-E foster care claims ran $341.2 million that year (A: Child Trends).

Nationally, youth incarceration fell by roughly three-quarters between 2000 and 2023 — the denominator collapse that drives every unit-cost finding in this file (A). And as of this writing a live federal solicitation offers $3.974 million for juvenile-justice system enhancements, three awards maximum (S: OJJDP notice).

The federal compliance machinery behind the Title II money has its own documented history: DOJ's Inspector General found in 2017 that OJJDP failed to assure compliance — twenty states received a single compliance audit in thirteen years; the compliance budget went from $6.8 million (2002) to $680,000 (2008) to zero direct allocation (2009); regulations dated to 1981; data lagged two to three years (A/NA: DOJ OIG; the Grassley-hearing testimony of Assistant Attorney General Karol Mason; the whistleblower complaint of compliance coordinator Elissa Rumsey in Wisconsin; OIG auditor Jill Semmerling). The girls'-program lineage names its own founders: Gwendolyn Delworth, the federal girls'-institute program manager of 1980, and Lawanda Ravoira and Vanessa Patino Lydia, who led the National Girls Initiative — with the PACE Center for Girls among the initiative's grant partners. In September 2026, DOJ began consolidating OJP, COPS, and OVW into a single Bureau of Justice Grants — the machinery is in mid-restructure as this is written (S: budget documents). And in April 2025, the federal government terminated five reform-grant awards mid-stream —

including the Vera Institute of Justice, New York-based, with $5.4 million remaining on $7.25 million — an action now in litigation — Democracy Forward v. DOJ, with an emergency-injunction motion filed February 2026 (S-primary: court filing). The reform-grant layer is politically liquidatable on a month's notice; the state facility line is not.

4.2 The state layer

The budget anatomy, reconciled to the cent. The Youth Facilities program's General Fund state-operations appropriation for FY 2026 (S: budget.ny.gov):

Line	**Amount**
Personal service, regular	$121,215,000
Temporary service	$3,325,000
Holiday and overtime	$9,657,000
Supplies and materials	$13,081,000
Travel	$627,000
Contractual services	$22,801,000
Equipment	$735,000
Total	**$171,441,000**

The OCFS total within which this line sits is $5.78 billion in the FY 2026 executive budget (a $114.3 million increase over the prior year) — $6.284 billion as enacted for FY 2025 — within a $268.5 billion all-funds state budget (S: budget documents). One thousand four hundred General Fund full-time employees (of 2,983 agency-wide — the agency's total headcount has sat between roughly 2,840 and 3,010 across 2016–2020 while facility beds fell by the thousand; S: OSC Comprehensive Annual Financial Reports). The overtime line is 5.6 percent of the total

— about $6,900 per facility employee per year — the documented premium cost of running nine facilities on chronic vacancy. The non-personal-services lines total $37,244,000 (supplies $13,081,000; travel $627,000; contractual services $22,801,000; equipment $735,000). The contractual-services line itself is the vendor river: food, psychiatry, agency nurses, security, information technology.

The per-diem machine and its cap, explained step by step.

Start with what a per-diem is. When a county's family court commits a girl to state custody, somebody has to pay the state for housing her. Rather than negotiate a price for each child, the state charges a fixed daily rate — a per-diem — and sends the counties a bill. The legal authority is Executive Law §529, which says the county must pay half of the non-federal cost of her care. Bills go out quarterly; if a county doesn't pay, the state simply deducts what it's owed from the next payment the state would otherwise make to that county — a mechanism called a bottom-line adjustment on the monthly notice of claim. In plain terms: the state pays the counties for many things, and for facility care, it claws its share back out of those other payments.

Now, how the rate is set — because this is the single most important mechanism in the entire money story, and it is documented in the state's own rate directives. The rates are not set in advance. After each operating period closes, the Office of Children and Family Services' Bureau of Budget Management takes the facilities' actual expenditures — what the payroll, the food, the electricity, the contracts actually cost — and divides by

the number of care-days the facilities actually delivered. The result is the rate for that period. This is called retrospective reconciliation, and it has a mechanical consequence that no one needs to intend: when the population falls, the denominator falls, and the per-day price rises automatically. The facilities' total costs barely shrink — the buildings stay open, the staffing ratios are mandated, the contracts run their terms — so the same cost divided across fewer girl-days produces a higher and higher daily rate with every empty bed. The rate directives themselves, read in sequence, show the machine working in real time (S: 16-OCFS-ADM-06, 20-OCFS-ADM-02, 21-OCFS-ADM-01, 26-OCFS-ADM-01):

- Calendar 2009: secure residential, $307.58 per day.
- Calendar 2011: secure $659.76; limited-secure $835.60.
- Calendar 2012 (interim): secure $751.90.
- Calendar 2013–14: secure $953.94; limited-secure $1,344.30 total, with $1,170.96 as the limited-secure figure of record.
- Calendar 2019: secure $2,612.42; limited-secure $2,368.80.
- Calendar 2020: $2,444.44 — the rate behind the widely cited figure of "nearly $900,000 per child per year." The Justice Policy Institute's Sticker Shock study reached $2,444.40 per day, $892,206 per year, by drawing on exactly this data (B, matching the S-primary directive to the cent). Its national comparison: a 48-state average of $588 per day, $214,620 per year, with only four states above $500,000 per

child-year.

That is an eightfold rise in the per-day price over eleven years, during which the population collapsed — and it is the arithmetic, not any single decision, that produced it. The state's own 2026 directive describes the method plainly: rates follow actual expenditures, reconciled after the fact.

Then, the cap. Here the record contains a discovery that reframes the entire chargeback system. Since 2015, the state's budget has limited the counties' aggregate liability for all OCFS facility costs to **$55 million per calendar year** — the agency's 2026 directive states the limitation began in 2015 and continued in each successive budget, and its 2021 directive cited Chapter 50 of the Laws of 2020 as the statutory anchor. To understand what the cap does, run the arithmetic the record supports. At roughly five hundred admissions a year to state facilities and a county share approaching $450,000 per child-year at the documented rates, the theoretical county obligation would approach a quarter-billion dollars annually. The cap stops it at $55 million. Above the cap, the state General Fund absorbs the difference — on the order of $170 million a year by this arithmetic, a derived estimate labeled as such. The famous per-child price, above the cap, is partly arithmetic and partly billing theater: the rate is real, the bills are real, and the collection stops at fifty-five million regardless of what the rate says. The reader should hold both halves together: the per-diem is an accurate description of unit cost, and the cap is an accurate description of who actually pays.

And the collection itself has teeth, which arrived in the same era. Chapter 53 of the Laws of 2015 armed the setoff: a county that leaves a per-diem bill unpaid for more than sixty days may find the state withholding the amount from any other funds OCFS owes it. The cap limits what the counties owe; the setoff guarantees the state collects what they do. The two instruments were born within the same five-year window and work as a pair. Payments themselves are processed by the named Child Welfare Services Settlement Unit, and the rates reach counties as electronic bills through the juvenile-justice information system, with list changes handled through a single bureau mailbox. The rate-setting seat has a documented succession — Hyeyoung Kim authored the 2021 directive; Edward Tang the 2026 — alongside the placement-data constant Kathleen Griffin, who appears in the 2016, 2021, and 2026 documents, and the voluntary-agency rate gatekeeper Karen M. Williams of the Bureau of Budget Management. The 2016 directive in this chain carries Acting Commissioner Sheila Poole's signature — the commissioner of record signing the billing machinery during the exact window the Taberg abuse litigation covers.

Raise the Age, explained the same way. In 2017 New York raised the age of criminal responsibility, moving sixteen- and seventeen-year-olds out of the adult system and into the juvenile one. The law came with money: $250 million a year, intended to help counties handle the influx — building capacity, funding services, paying for the transition. This is how it was supposed to work: a county would plan its Raise-the-Age spending, submit the plan to the state for approval, front the money for services

itself, and then apply for reimbursement. This is how it actually worked, documented across five years of state accounting (S: OSC, May 2025): through SFY 2025 the state appropriated $1.71 billion — and disbursed $658.8 million. Thirty-eight and a half cents of every appropriated dollar reached a county. The gate explains most of the gap. A county's plan must be approved by OCFS and the criminal-justice services agency and then by the Division of the Budget, the governor's budget office; the county must pay for services first and wait to be paid back; and the county must stay inside its property-tax cap to qualify. New York City — where most of the affected youth live — was excluded entirely unless it won a special hardship waiver, which the state accounting treats as non-participation, until the FY 2027 executive budget opened a $300-million-a-year line to it (S: NYC Comptroller Lander's budget comments). Where the money did move, the record shows where it landed: in the ten highest-arrest counties outside New York City, only 10 to 20 percent of approved Raise-the-Age spending went to community-based services; the remainder funded detention, placement, probation staffing, and law enforcement. In the same OSC accounting, serious-offense juvenile arrests fell 68 percent between 2013 and 2022 — the outcome the program's defenders cite; a DCJS channel example: Jefferson County's $112,183 grant for a probation officer. Named at the gate: the Raise the Age NY Coalition (roughly one hundred law firms and organizations, whose accounting of the $1.5 billion appropriation anchors this section), Albany County Sheriff Craig Apple ("money for counties… never happened"), Watervliet Police Chief Joseph

Centanni, and the New York State Association of Counties (NYSAC), which has demanded an upfront grant model in place of reimbursement. New York City Councilmember Nantasha Williams, at the January 2026 hearing round, put the gap in the record: keeping the law without fully financing it "leaves young people... carrying the cost" (A: The Imprint).

One legislative remedy was attempted and failed: the Youth Justice Innovation Fund — bills S.643/A.8491, a $50-million-a-year carve-out for direct community-based grants administered by DCJS on a Project RISE model — died in the final FY 2025 budget; the Assembly's FY26-27 proposal instead adds $100 million to the base line and opens it to New York City (A: legislative record). And the unspent balance does not revert: budget language expressly allows counties to access prior-year plan funding through current appropriations. The pot rolls forward, accumulating, while fresh $250-million lines stack on top. Chapter 53 of the Laws of 2026 continues the machinery at 100 percent of incremental costs net of federal funds.

The other block grants. Two further pieces of the state layer deserve the same plain treatment. The Foster Care Block Grant — $426,016,000 for SFY 2026-27 — pays for foster-care placements on a three-year claims formula, and it contains two documented exclusions that matter here. PINS placements receive zero reimbursement from it: a child who committed no crime draws nothing from the foster-care block. And state expenditures on youth held in state-operated facilities are not block-grant-reimbursable: Taberg's costs ride only the §530 chargeback with its $55 million county cap. The Flexible Fund

for Family Services runs $964,000,000 in the same budget, its TANF-funded channels itemized by name. The PINS double-exclusion is thus documented at three levels — barred from federal IV-E, barred from the state FCBG, funded only through the capped chargeback on unlimited General Fund money. Whether that architecture is wise is a question for the reader; that it is the architecture is not in doubt.

The wage ratchet. Finally, the human half of the payroll line, explained as mechanism. The direct-care workforce at Taberg belongs to the Civil Service Employees Association; its state agreement, April 2026 through April 2031, runs 4.5/4/3.5/3/3 percent across its term — signed by Governor Hochul and CSEA President Mary E. Sullivan for 55,000-plus state employees. The professional unit — the PEF, covering nurses, clinicians, social workers, and teachers — holds a parallel agreement whose most notable feature, for this file, is a first-of-its-kind **$300-per-year hazardous-duty bonus for employees at facilities operated by OPWDD, OMH, DOCCS, and OCFS "which house individuals in the custody or care of the State,"** atop the existing $1/hour hazardous-duty pay (S: governor.ny.gov; PEF Communicator). The state has priced the danger of this work into the contract — an institutional acknowledgment in dollars. The agreement's geography of money is equally specific: a downstate adjustment rising from $4,150 to $6,650, a Mid-Hudson adjustment from $2,150 to $2,950 (Ulster County added), inconvenience pay from $575 to $825, shift-adjustment differential from $750 to $1,000, and standby-recall pay at 25 percent of the daily rate per eight-hour roster period; the

preceding 2023–2026 agreement had run 3 percent annually plus a $3,000 bonus. The state's negotiating team of record for the earlier agreement: Joseph M. Bress (chief negotiator), Michael N. Volforte (OER director), and the Division of the Budget's Kerri Harney and Matthew Schultz, with the Office of Employee Relations signature block completing the team of record: Richard R. Ahl, Melinda Beyer, Abbie Ferreim, Jennifer A. Jackson, Margaret D. Lloyd, Caroline D. Melkonian, Amy M. Petraganni, Raymond Weiss, and Daniel Yanulavich. The significance for the budget: every percentage point flows into the $121.2 million payroll line regardless of the census — a ratchet written into the rate formula as well, where the voluntary-agency rates carry a 7.5 percent two-year personal-services factor plus the 2.7 percent Targeted Inflationary Increase (S: 26-OCFS-ADM-10; the figures carried in the budget analyses of the Schuyler Center for Analysis and Advocacy and Citizens' Committee for Children), and where raising a program's rate requires counties representing 80 percent of its census to pre-commit to paying the increase — a county cartel written into the rate-setting rules.

Voluntary-agency rate requests run through the Statewide Payment Standards portal and the State Aid Rates Unit, with rate families spanning foster care, special-education placements (including an out-of-state schedule), and the Dormitory Authority capital add-on (S: ocfs.ny.gov/main/rates/).

4.3 The county layer

So the state charges the counties — how does that actually go, and what does it come to? Counties reimburse the state per placement at the §529 rate within the $55 million cap. The documented scale: New York City paid OCFS **$15.2 million in FY 2016 to place fifty-one children — roughly $298,000 per placement** — before the per-diem inflation documented above (A: NYC budget analysis). The education layer adds a second, quieter back-bill: under Education Law §§4402/4405 and the 2003 amendments, the district of origin remains responsible for tuition "regardless of who is responsible for transportation" (S: OCFS ADMs 18-OCFS-ADM-18, 22-OCFS-ADM-01), at NYSED-set rates of $10,040 (grades 7–12 general education) and $53,007 (special education) — and the foster-care/CSE financing split documented in the Regents' records runs 49 percent OCFS / 51 percent home-district (A/B: Bellwether, citing Regents P-12 and NYSED regulations). At the ledger level, the state's claiming rate for ten-month CSE residential maintenance runs 18.424 percent (S: OTDA fiscal reference manual), and the state's share for placements into privately operated residential schools has been set at zero percent (S: 23-OCFS-ADM-10) — the district and institutional shoulders carrying what the federal IV-E exclusion removes. The derived estimate this supports: a Taberg girl in grades 7–12 with an IEP — the modal case — bills her home district approximately $27,000 a year; at a twenty-girl census, roughly $540,000 a year flows from sending districts (chiefly the New York City Department of Education) into facility

education. A derived estimate, labeled as such; the executive budget has twice proposed eliminating the state's side of this structure, and the Assembly has twice restored it ($28.6 million in the FY 2026-27 round) — the education back-bill survives on legislative intervention, documented in Part VIII as anomaly A14.

The county detention economy, for contrast. Under Executive Law §530, the state reimburses counties **49 percent** of secure and non-secure detention costs, with facility rates set quarterly by the same retrospective reconciliation; counties boarding other counties' youth claim **100 percent state share** — the profit incentive the Oneida County jail economics ($85 per boarded person per day, $2 million a year as of 2011) formalize into state policy (S: 26-OCFS-LCM-23). Fiscal responsibility follows the youth, not the courtroom: for juvenile-delinquent youth the home county pays regardless of which county's court commits them; for juvenile offenders and adjudicated offenders the court county pays. Line items moving more than 10 percent require a narrative; combined secure/non-secure buildings face a 10 percent cost-allocation deviation rule; and the accuracy of the claims is the county's "sole responsibility" (S: 26-OCFS-LCM-23). (The allocation formula itself: upstate counties receive 120 percent of the greater of their prior-year allocation or their second-highest claim year of 2020–25.) A $2 million OCFS reserve for technical assistance and supplemental claims sits outside the formula; claims run through the MySend portal and the JDAS system. Claiming deadlines have been cut from one year to six months — a window the directive itself says

hampers counties' ability to shift detention savings into diversion. Balances do not carry forward.

There is a third, quieter county-money layer: the earmark. OCFS's aid-to-localities lists carry dozens of standing member items — the Association of NYS Youth Bureaus at $225,000, the YMCA of Greater New York and its foundation, the Hispanic Federation at $650,000, Sunrise Day Camp, the Boys and Girls Club of Harlem, Make the Road, and their peers — recurring year over year, each spendable only under a plan approved by the legislative leadership and the Division of the Budget (S: budget.ny.gov; Assembly A10003). Three documented features: first, Oneida County holds zero OCFS earmarks — the county hosting the facility has none, while the Westchester County Youth Bureau, the sitting commissioner's former shop, holds a standing $260,000 line; second, the state's liability for sexually-exploited-children services is statutorily capped — "the state's liability shall be limited to the amount appropriated" (Social Services Law §447-b, $1 million in FY27 against $2 million in FY25); third, the discretionary pots (roughly $6.8 million and $2.8 million) spend only through the same two-key approval documented at Raise the Age scale; adjacent recurring lines include 2-1-1 New York at $2.8 million and the Fresh Air Fund at $1 million. The earmark map follows political relationships, not facility geography.

4.4 The diversion side, fully priced

Against the $171.4 million facility line and $250-million-a-year RTA line, the community-side programs (S-primary, all current-form memoranda):

Program	Annual scale	Method	Signature authority
STSJP (statewide diversion)	**$10,876,000**	62% reimbursement	Aledort
Chafee (independent living)	$10,471,958	equal LDSS shares; 75%-contracting trigger	Clinton
RHY (runaway/homeless)	county table (Appendix A)	$15K floor; beds; 90% programming floor / 10% coordinator cap; Oswego fixed at $80,550	Aledort
Safe Harbour (trafficking)	county table	**equal shares to every county**; 100% state share; justice-involved youth expressly eligible	Aledort
YSEF (youth sports/education)	~$15,000,000	$20K municipal floor + under-18 population split; $75K per-program cap; **the only program text that "strongly encourages" serving youth in facilities**	Aledort
YTS (team sports)	county table	$10K floor; $50K/program cap; AED purchases eligible under the 2023/2026 cardiac-safety mandate; community-only text	Aledort
YDP (youth development)	county table	under-21; **98% prior-year floor**; 15%+15% double-admin carve	Aledort

Program	Annual scale	Method	Signature authority
JJAG federal grants	~$6,750,000	DCJS-administered: $4M Transformative Youth Justice Hubs, $1.5M YFACTS Data Center, $750K mini-grants, $200K youth committee, $300K conference	—

Two reference points from the county level: Wyoming County's entire diversion allocation is **$41,228** against a state per-child placement cost of $892,000 — a 22-to-1 inversion between the bridge and the cliff edge, documented in the county's own budget narrative (B). The diversion directives themselves now carry the accountability framework the facility side lacks: a risk-need-responsivity mandate citing Skeem et al. (2025) in the state's own text, an alternative-to-detention ratio trigger requiring at least half of any proportional increase to flow to alternatives once the ratio exceeds 0.3 — and the detention-shift trap written into the same directive: counties moving detention money to diversion and then exceeding their detention allocation absorb the excess at 100 percent local share (S: 26-OCFS-LCM-11). The same plan files give the comparison map: Nassau County $283,518, Westchester County $350,787, Tompkins County $55,811, Cortland County $48,979 — diversion allocations tracking county fiscal capacity rather than facility geography (S: county plans on file with OCFS). The same record preserves the community-reinvestment contractors of an earlier era, each with its contract figure (S: the OCFS-funded community reinvestment program list, 2013): Good Shepherd Services (Bronx, $595,000 initial; Brooklyn, $595,000), CASES

(Manhattan, $589,653), the Fund for the City of New York's Center for Court Innovation (Queens, $518,500), Berkshire Farm Center (Nassau, $484,044), Hope for Youth (Suffolk, $593,988), and Hillside Children's Center (Monroe, $595,000, with seven subcontracts) — serving probation-referred youth, ages eleven to fifteen, in three-to-five-month programs. No Oneida County contractor appears on the list. Monroe County's plan records that half its 2024 intakes came from six Rochester ZIP codes (B/S: county plan), and documents its FACT program (Family Assessment and Community Treatment, Hope Science framework) with family-reported outcomes: 79 percent positive ratings, 88 percent of referrals meeting needs, 76 percent of families reporting more hope — the community-side accountability data that has no facility-side counterpart in this file. Roughly fifteen counties take no STSJP money at all (S: the planning directory). Four Aledort programs total roughly $40 million-plus; the institutional machine totals $226 million with capital. Six cents of prevention per dollar of institution — the ratio in the state's own documents, set side by side.

4.5 The payout layer: what the money buys

Everything in Parts 4.1 through 4.4 describes money in motion — appropriations, caps, block grants, chargebacks. This section follows the money the rest of the way, into the vendor invoices and pay envelopes where it becomes concrete. The frame to hold while reading it: the $171.4 million line's non-personal-services share is $37,244,000 a year, of which contractual services — everything the state buys rather than employs — is $22,801,000. Every contract below is a documented piece of that river, and the river's most important property is that none of it scales with the census. The psychiatrist bills by the hour whether seventeen girls are in the building or twenty-one; the food contract runs on annual true-ups; the water plant requires its certified operator every day of the year. This is not a complaint; it is the arithmetic that turns a falling population into a rising per-child cost, made visible contract by contract.

Payroll. Taberg's direct-care workforce are state employees on the personal-service lines: the documented ~86 staff of 2012 (a third of them new within six months of August 2012); the injury wave of late 2011 that took thirty-three Youth Division Aides off the job of eighty-six — eighteen injured, three with broken bones, a concussion, a dislocated shoulder — and drew OCFS's own acknowledgment: "new facility leadership, the hiring of an additional twelve support staff and increased staff training" (NA: press and testimony, January 2012). The five additional YDA positions approved in 2015 against the

watch-load (S: monitoring report). The agency-nurse era: twenty-plus OSC contracts from 2022–2026 with twelve staffing agencies backfilling registered-nurse vacancies at premium rates — the individual commitments, all in the OSC contract record (S):

Contract	Vendor	Amount
OCP000126	Maxim Healthcare	$94,240
OCP000322	Maxim	$205,593.75
OCP000350	Staff Today	$36,694.89
OCP000469	Staff Today	$83,340.27
OCP000577	White Glove Placement	$32,011
OCP000679	Amergis	$320,310 (Monroe County)
OCP000685	Amergis	$108,000
OCP000745	InfoJini	$124,000 (Region 9)
OCP000748	Maxim	$94,240 (Finger Lakes)
OCP000771	Maxim	$222,030
OCP000856	Maxim	$113,051.25 (Goshen, Region 4)
OCP000878	ExecuSearch	$197,145 (Region 4)
OCP000890	Amergis	$190,215 (Region 1)
OCP000981	Amergis	$240,255 (Region 3)
OCP001012	White Glove	$96,902.22 (Brookwood)
OCP001019	Talent4Health	$83,680
OCP001020	Health Advocates Network	$255,386.25 (Region 6)
OCP001042/52	Aya Healthcare	$285,480 / $198,810 (Region 9)
OCP001138	Ethan Allen Personnel	$182,832.10 (Ulster)
OCP001174	TechnoStaff	$137,737.50 (Orange)
OCP001149/185/280	Amergis	$511,209 / $148,005 / $201,971.25 (Columbia County)
OCP001186	Health Advocates Network	$467,299.70 (Orange)
OCP001389	Worldwide Travel Staffing	$104,215 (Cayuga)

The proxy wage anchor for the direct-care title: approximately $64,310 average for Youth Specialists at the facility (B: Indeed aggregation). The individual payroll roster —

names, titles, overtime — is public via SeeThroughNY (operated by the Empire Center for Public Policy) and the openpayrolls mirror; the facility-level query is documented in Part X as a manual pull, with one successful extraction already in this file (Christopher Schall, $154,500/$159,135). The labor-supply side of the community system is equally nameable: the state's child-welfare-worker scholarship program lists the employing agencies — Hillside, Villa of Hope, Glove House, Cayuga Home for Children, Elmcrest, House of the Good Shepherd, Liberty Resources, Toomey, William George Agency, Abbott House, Astor, Sheltering Arms among them — the voluntary-agency network whose workforce the state subsidizes into being (B/NA: HESC list). The pipeline's largest child-welfare contractors, named for the record: JCCA (the Jewish Child Care Association), the New York Foundling, Hillside, Sheltering Arms, and Cardinal McCloskey Community Services — the licensed voluntary foster-care agencies that hold the IV-E-eligible placements the facility's girls do not receive.

Food. The statewide vehicle is OGS Group 02450, Award 23199 (June 19, 2020–June 18, 2028), mandatory under State Finance Law; Taberg rides the Central lot — **US Foods Inc. dba Renzi Foodservice, Watertown** (administrators Kelly Lewis and Stephanie Sutton named in the award documents). The Taberg-keyed increments on record: $47,340, then $100,000 (contract OCP001373, fiscal 2025-26, approved January 2026) and $100,000 (OCP001510, through March 2027) — "additional purchase" augmentations riding purchase-contract PC70144, plus a standing meat procurement (RFQ2026-018) written

specifically for Taberg's weekly orders. Actual statewide institutional purchases across all agencies ran $31.86 million (2021) and $43.4 million (2022) across six distributors — the published-price vehicle carries no volume discounts (S: OGS Food Metrics). The sibling facilities ride the other lots: Sysco Syracuse (MacCormick, Finger Lakes), Sysco Albany (Highland), Sysco Long Island, Metropolitan Foods dba Driscoll Foods (Brentwood), and H. Schrier (Brooklyn-area). The augmentations, investigated and documented in this file, reflect base contracts set below consumption with routine year-end true-ups — a budgeting pattern, investigated to closure rather than assumed to be an overrun (see Part VIII, A4's disposition).

Psychiatry — the five-generation contract genealogy. The documented predecessor is IFB 2016-01, which let psychiatry for three upstate facilities in 2016. The dedicated era begins after the 2012 baseline of two part-time psychiatrists and a locum-tenens stopgap (S/B: 7th monitoring report: "received approval to hire full time psychiatrists at each facility. However, recruitment remains a challenge"). The facility-dedicated contract followed: **IFB 1083, "Psychiatric Services for Taberg Residential Center," $904,176, 2021 through December 2024** (contract manager Mark Cattalani). The consolidation vehicles: **IFB 1190, various facilities, $2,393,460, with a $399–400/hour rate benchmark**; IFB 1207 (Goshen and Highland, April 2025) a parallel facility-specific letting; **IFB 1199, MacCormick and Taberg, $2,416,176 total, term June 1, 2025–May 31, 2028 — Taberg's position at $1,206,576, $399/hour** (S: award lists,

retrieved in full). And the current vehicle, **IFB 1255: five positions across four facilities, Taberg's at 864 hours a year, commencing December 2026 — with locum-tenens vendors and staffing agencies formally ineligible to bid**, the estimated size $2–5 million. The genealogy records the answer to a documented recruitment failure: first the agency premium, then the quiet procurement exclusion of the agency model. At specification, Taberg's prescriber line runs roughly $346,000 a year — some $17,000 per girl at current census — for the psychiatrists who sign for the medication profile documented in Part II, under assessments that the monitors, adopting their consultant's finding, had already described as checklist-driven.

Education. The Annex school is run by OCFS's own Bureau of Education Services — teachers are PEF-represented state employees (one named in the union's own publication: Jason Courrege, Content Curriculum Coordinator, Bureau of Youth Academics and Scholarship, whose career path ran Red Hook to Brookwood to the Bureau). Funding: the 49/51 split above; the federal Title I-D layer ($2.36–2.70 million a year to New York's state agencies, the juvenile share inside it); the NYSED tuition-rate basis; and the first dedicated state line in the system's history — $1.5 million proposed by the Board of Regents in December 2025 for a statewide juvenile-justice hybrid high school, targeting the 2028-29 school year. A regional wage benchmark for the teaching workforce: the Madison-Oneida BOCES starting teacher salary of $65,913 (ten-month schedule) — Taberg sits in that service area, and the

Annex school's PEF scales are comparable in kind. New York City runs its own parallel system through District 79 for city-custody youth. The city's own $41.4-million-a-year Close to Home program (2012–2018, later reauthorized without state support) was built for boys; no equivalent off-ramp was ever constructed for secure-level girls — the asymmetry documented in the record.

Health beyond psychiatry. Dental: **IFB 1228 awarded to eight agencies for $2.5 million, live October 1, 2026** — five-year terms, Medicaid rates as the pricing floor, a sixty-mile radius for Taberg's providers (S: awards page). Water: the campus's own plant, a certified Class C operator under five-year IFB 1242 from March 2026. The on-site laboratory under Dr. Horne's registration. Medical consultant line items appear in the OSC record alongside the food augmentations. Vending: the one documented revenue stream flowing *into* the facility — net-sales commissions under IFB 1178 (2024–2029).

Security and overhead. Universal Protection Service holds the Region 4 security line (~$37,000). Home Office information-technology consulting — System Edge USA, MVP Consulting Plus, Knowledge Builders, GreyCell Labs, Computer Technology Services — runs approximately $2.4 million combined (S: OSC).

The vendor river's final number. The $22.8 million contractual-services line, itemized through the procurement record: food (hundreds of thousands per facility per year), psychiatry ($2.4 million per multi-facility vehicle), agency nursing (multi-million), dental ($2.5 million), water operations,

security, IT — against a census, across nine facilities, that this file documents at its largest point at roughly twenty-one girls in one building and a few hundred system-wide. The contractual layer, like the capital layer, does not scale to the population it serves. That is documented arithmetic, not argument.

4.6 The capital layer

The state's capital envelope for this system is large, growing, and only partially spendable. The FY 2026 documents show **$86,950,000 in proposed OCFS capital projects**, against which reappropriated balances accumulate: $274 million carried for the Youth Facilities Improvement Fund, $101.7 million for Program Improvement, $8.2 million and $13.8 million more for facilities maintenance lines — roughly **$398 million in reappropriated youth-facilities capital** sitting authorized-but-unspent (S: budget.ny.gov; Assembly WAM report). The same posture holds at the criminal-justice sister agency: DCJS carries $1.335 billion in reappropriated aid-to-localities — the reappropriation-without-disbursement pattern documented across the justice budget (S: FY27 budget).

The Raise the Age built its own capital machine. Albany County's Series 2022 bonds — **$16,120,000** issued by the Dormitory Authority for the Capital District Juvenile Secure Detention Facility renovation (authorized to $22 million) — carry the structure in the Official Statement's own words: the bonds are annual-appropriation obligations, *not* constitutional debt, with the county's faith and credit expressly unpledged; the security is an **intercept** — if a county's financing payments lag,

DASNY may direct the comptroller to seize any state aid due that county from OCFS, under a four-party memorandum with five-day notification and five-day remit duties (S: Moody's Aa2 rating analysis; DASNY board minutes; Chapters 55 and 173 of the Laws of 2018 are the authorizing statutes). The board minutes of record name the staff presenting the financing agreement (Ms. Bennett) and the directors moving and seconding its approval (Ms. Snyder, Ms. Sullivan). The same pledge-and-intercept architecture runs the voluntary-agency capital river — the IAC pooled program shows $308,125,000 issued since 2010 with $155,955,000 outstanding as of June 2026; Rising Ground alone carries $79.7 million in lifetime DASNY issuance (S/NA). And the Official Statement fixed a milestone: "The State has appropriated a total of $1.2 billion as of April 2022 to support the Raise the Age Initiative" — against $1.71 billion through 2025, the growth trajectory of the unspent pot documented at its bond-market checkpoints.

The flagship current project prices the contradiction: **Westchester County's Woodfield Cottage replacement — an 80-bed maximum facility at 20 Hammond House Road, Valhalla, with the state reimbursing 82 percent of costs on a $245 million project, roughly $201 million in state construction money**; Urbahn Consultants as bridge consultant at 30 percent design; construction start 2027; RFQ responses due December 11, 2026 (S/NA: county resolution; industry notice). A quarter-billion-dollar new build, state-funded at four-fifths, proceeds while the community-services side of the same initiative sits $1.06 billion unspent. Both facts are in the

same record; the reader may draw the conclusion the arithmetic invites.

The Taberg campus's own capital trail — the seven projects of Part I — draws on this envelope through OGS Design & Construction. Its most recent visible entries: IFB 1242 (water operations, March 2026) and IFB 1240 ("Statewide Enhancement Programs for Youth," Taberg and Brentwood named).

4.7 What accountability has cost, and who has paid

The litigation economics, from the record. The 2007 Tryon death settled for **$3.5 million** (A/B). The G.B. class action closed by stipulation in August 2013 with, per the close-to-home program evaluation, "more than a dozen individual plaintiffs receiving substantial settlements and the lawyers who brought the case claiming $1 million in fees" (A). The New York City detention litigation — a separate city system — has generated approximately **575 lawsuits**, with 464 Bronx cases dismissed under the earlier city-law framework in September 2025 and a new city law opening a filing window through July 29, 2027 (NA, citing city financial disclosures). National settlement scale exceeds $4 billion; New York valuation bands documented at $50–150,000 where documentation is thin, $200–500,000 for verified institutional negligence, and above $1 million for severe cases (NA law-firm guidance — presented as market context, not as legal advice).

In the Taberg litigation itself (Part VI), the July 2026 ruling left only individual-capacity claims against three former

employees; the negligent-hiring claim against the state was barred by the Eleventh Amendment. The practical consequence, documented rather than lamented: the institution that held the $171.4 million line pays nothing on the theory that would expose its money, the individual aides are the only reachable defendants, and the plaintiff's bar works on contingency — Levy Konigsberg continuing to recruit survivors, with Sokolove Law's national intake advertising current, (page updated April 2026) alongside national intake advertising. The institutional shield is itself a finding: accountability, where it arrives, arrives through individual pockets.

4.8 What watching has cost

The federal monitors — Beyer and Roush — served twelve-plus years under the standard DOJ doctrine that the defendant pays for its own monitor: "The monitor will serve at the cost and expense of Settling Defendants" (S: Federal Register standard-form clause). Benchmarks from comparable decrees run from $100,000–160,000 a year for small engagements to $4 million over five years (Oakland) and $750,000 a year (Minneapolis); New York's engagement, against the $171.4 million line it watched, plausibly totals $1.5–5 million across its life — an estimate range labeled as such (A/NA). The reform that governs monitor selection descends from the 2008 Morford Memo, written after the $52-million Ashcroft monitoring contract scandal; it reformed *how* monitors are chosen, not *who pays*. And the PREA record adds the final self-funding layer, documented at all nine facilities across three audit cycles: **every single audit was paid by "the audited facility or its parent agency."** The watched have paid the watchers at every level of this system. That sentence is a documentation of practice, not an accusation of corruption.

4.9 The hidden costs

Workers' compensation: New York runs a $9-billion-a-year program at the nation's second-highest premium rates ($2.00–2.49 per $100 of payroll; a 22 percent rate reduction took effect October 1, 2026). Against that market, Taberg's payroll base of roughly $5.5 million (a derived estimate from the documented headcount and wage anchor) and its documented injury history — eighteen staff hurt in the 2011–12 wave; eight of twelve interviewed staff on workers' comp in 2015; the state-recognized injury rates among the highest of any state agency with a 33-percent single-year rise (A: Assemblymember Lancman's report) — the safety crisis converts to a recurring insurance cost outside the facility budget. Agency-level premiums are not public; the route is documented in Part X.

4.10 The two prices, side by side

The comparison this file was built to make, in the state's and city's own contract figures (S: ACS Close to Home Concept Paper): a **community-based limited-secure placement for girls in New York City costs $2,915,000 a year for six beds — $486,000 per bed** (the non-secure tier runs $2,805,000 for an eight-bed home — $350,625 per bed), twenty-four-hour staffing included, minutes from family. The state facility **bills $892,000 per child per year**, 250 miles away. The community placement costs approximately 45 percent less per child for the same security level. Every policy document for fifteen years stated community placement was cheaper; these are the two numbers, from the two governments' own contracts, side by side.

PART V — THE OVERSIGHT RECORD

Every system that locks up children gets watched. The question this part asks is simpler than it sounds: who watched, when, what did they write down, and — here's the twist the record keeps handing us — who paid for the watching. Four layers of oversight get examined in turn: the federal settlement and its monitors, the state auditor, the PREA audits, and the Justice Center. Two findings at the end will surprise you even if you've read everything up to now.

5.0 The birth record: the 2009–2010 press chronology

The modern oversight era has a dated paper trail, and the dossier preserves it because the public record began there (B: New York Times, via a contemporaneous law-review compilation of the originals):

- **August 25, 2009** (Confessore, page one): "4 Youth Prisons in New York Used Excessive Force" — "broken bones, shattered teeth, concussions and dozens of other serious injuries over less than two years"; the Justice Department's characterization of the restraint practice: "Anything from sneaking an extra cookie to initiating a fistfight may result in a full prone restraint with handcuffs."
- **December 14, 2009** (Confessore, page one): "New York Finds Extreme Crisis in Youth Prisons" — the Paterson task force's verdict on a system "broken, ineffective and dangerous"; roughly $210,000 per inmate per year; 75

percent re-arrested within three years; Commissioner Carrion, by her own account, was advising family-court judges to avoid placements.

- **December 30, 2009** (Confessore): the G.B. suit is filed.
- **January 27, 2010** (Confessore): a federal judge bars routine shackling after the case of a fourteen-year-old transported two hundred miles in shackles; **February 4, 2010:** OCFS revises its shackling policy by memorandum of Deputy Commissioner Joyce Burrell.
- **February 11, 2010** (Bosman, page one): "For 800 Youths Jailed by State, Not One Full-Time Psychiatrist" — seventeen part-time psychiatrists system-wide; group therapy run by staff with no qualifications beyond a high school degree.
- **February 14, 2010** (Confessore): a Highland portrait — "No one seemed to care whether he took his pills"; a moderately retarded youth repeatedly restrained, his head banged on the floor.
- **June 2, 2010** (Confessore): Governor Paterson proposes barring judges from sending low-level offenders to state facilities.
- The editorial economics of the same months: "paying over 2,000 employees to oversee fewer than 700 children"; roughly $220,000 to house a child; the Times urging the governor to "stand up to the labor unions" and faulting the 2006 one-year-worker-notice closure law as the closure-blocker. Judith Kaye, the former chief judge, called the reform efforts "heroic"; Commissioner Carrion called the

facilities a "toxic environment." Each name, date, and quotation above is from the cited originals as compiled.

5.1 The federal settlement and its monitors

On July 14, 2010, the United States filed its complaint (S: DOJ, nyjuv_complaint_7-14-10.pdf). Its core finding: conditions at Lansing, Gossett, Tryon Boys, and Tryon Girls "violate constitutional standards" in protection from harm and mental-health care. That finding rested on Acting Assistant Attorney General Loretta King's letter of August 14, 2009, recording that the state "disregarded known or serious risks of harm." The thirty-page settlement that followed banned pepper spray, barred psychotropics as a sedation tool, capped face-down restraints at three minutes with a four-hour medical assessment, required exhaustion of non-physical techniques first, mandated weekly administrator review of force reports and video, required neutral third-party investigations (including withdrawn allegations), and set termination of the agreement only after twelve consecutive months of compliance — the clause that guaranteed a long monitoring life. When Tryon Girls closed in 2011, the oversight followed the girls: on September 2, 2011, the state and DOJ agreed to designate Taberg and Columbia as the monitored facilities in Tryon's place. The monitors' assessment of the internal quality-assurance bureau was "excellent"; their assessment of the restraint practice was the projection of 746 restraints a year for twenty girls.

The monitoring record's recurring findings across twenty-two-plus reports, itemized as the monitors wrote them:

- **The restraint economy** (documented in Part II).
- **The staffing collapse** — "there is no cavalry coming" — and the churn.
- **The 2014 unfounded-allegation wave**, which "quickly destabilized staffing and eroded safety, security, and structure" — the facility treating the allegations themselves as the crisis.
- **The clinical vacancies** — two of seven positions filled for four straight months.
- **The psychiatry assessments**, adopted by the monitors as substandard.
- **The medication profile** (Part II).
- **The programming layer** — a Triad curriculum pilot at Columbia, Lansing, and Taberg; the Innervisions substance-abuse curriculum; DBT-SUD groups; a full-time substance-abuse counselor at Taberg; and the Daily Achievement System scoring behavior in five periods around the clock (6–10 p.m., 10 p.m.–6 a.m., 6–10 a.m., 10 a.m.–2 p.m., 2–6 p.m.).
- **The girls' group-safety refusal** — declining substance-abuse groups because they "do not feel safe in groups… worry their substance abuse will be reported" — alongside the OASAS-standards alignment in progress and the addition of female Youth Division Aides to the night shift after complaints about all-male room checks.
- **The off-camera restraint pattern** — five of ten sampled restraints in-room.

- **The internal celebration of restraint declines** on data the monitors' own projections contradicted.
- **The April 2012 discipline files** — a Youth Division Aide found guilty of pressing his full body weight on a girl, spitting on her, and kicking her, with termination *proposed* and the paperwork never produced ("Documentation regarding the outcome of the termination effort has not been provided"); and a second aide reprimanded and suspended six months without pay for lying on an incident report and failing to protect her — of which the monitors wrote that other juvenile-correctional agencies "might have found the severity of this misconduct sufficient to warrant termination," while accepting the six-month suspension as "appears to be acceptable" in itself.

5.2 The state auditor

Comptroller DiNapoli's office audited the juvenile-justice facilities for October 2018 through August 2023 — Report 2022-S-13, issued April 2024 (S: OSC): self-harm episodes doubled over the period; expressions or gestures of suicide rose 667 percent (three to twenty-three); of 101 youth files examined, more than half were incomplete (blank medical checklists, preliminary mental-health interviews not conducted, food allergies unrecorded); of 162 employees involved in 96 restraint incidents, more than half were not current on first aid/CPR; one youth waited nearly nine months for the intake medical assessment the rules require within seven days. The comptroller's follow-up audit followed in February 2026. His office separately accounted the Raise the Age money (Part IV) and signs every contract in this file.

5.3 The PREA ledger, complete

Here's how to hold the next list in your head: PREA audits run on a three-year rotation, one-third of the facilities each year, and every allegation is investigated by the state Justice Center. What follows is three full cycles of those reports — every finding, every zero, facility by facility — retrieved from the primary documents. The Prison Rape Elimination Act audits, retrieved in full from primary documents for every cycle posted (S: ocfs.ny.gov PREA reports, retrieved via the archive mirror; each audit facility-paid and Justice Center-investigated):

- **2024 cycle:** Brookwood — zero findings on every outcome grid (its audit window predating the conduct period of the psychologist later convicted in the case below); Finger Lakes — approximately four substantiated harassment findings (the exact cell mapping partially garbled in extraction, flagged); Goshen — zero (its window predating the 2026 arrest in Part VI).
- **2025 cycle (the girls' facilities):** Taberg — **two substantiated resident-on-resident sexual abuse investigations and one staff-on-resident investigation unsubstantiated** in the twelve-month window; one finding that an incident review ran thirty-one days against a thirty-day standard; six files reviewed. Tubman — one substantiated inmate-on-inmate harassment; criminal outcomes all zero. Brentwood — one substantiated harassment **plus the documented 2023 substantiated staff-on-resident case on the overnight tour** — the same audit found unannounced supervision rounds conducted during sleeping hours in only five of twelve months, seven of twelve missed at the facility with a documented overnight abuse case; corrective action and four-month monitoring followed; resolution confirmed.
- **2026 cycle:** Finger Lakes — three harassment allegations, at least one substantiated, the staff-on-inmate cells requiring manual read (flagged); Highland — one substantiated inmate-on-inmate harassment; MacCormick — zero.

The pattern this ledger documents: findings at five of eight reporting facilities across three cycles; every audit paid by the audited; and audit windows consistently lagging the conduct windows — each modern scandal (the psychologist's case, the Goshen aide's arrest, Brentwood 2023) surfaced *after* the facility's zero-grid cycle closed. The PREA instrument, as documented, is a rear-view mirror. The January 24, 2025 statewide PREA Follow Up Plan — training, supervision, staffing plans, video surveillance, staff and administrator expectations, convened for every facility administration — is the institutional response layer on record.

5.4 The Justice Center and the allegation economy

Every investigation in the PREA ledger ran through the New York State Justice Center for the Protection of People with Special Needs (S: the audit reports). The Justice Center's verification rate nationally sits below one in ten claims, with unsubstantiated files sealed — the structural reason the "unsubstantiated" outcomes in this ledger cannot be read as exonerations, a documentation of the national pattern (A: BJS; R Street). The Special Investigations Unit's 2012-era protocol — labor-relations conferral, conflicting-evidence mandates, facility-run investigations for lesser allegations — is documented from the agency's own procedures manual (NA-hosted primary: PPM 3247.17). And the union complaint layer: the January 2012 Workplace Violence Prevention Act filing over Taberg, CSEA's call for the commissioner's dismissal, PEF's documentation of member injuries, and — in June 2025 — the PEF letter to lawmakers describing Industry's Memorial Day conditions that became the trigger for the solitary-confinement litigation of Part VI.

5.5 The union of internal and external data

The monitors themselves confirmed the cross-checks: semi-annual Performance-based Standards data flowed to them in Home Office spreadsheets (S: 7th monitoring report); the restraint packets carried video the monitors reviewed packet by packet; the 2012 data point that 67 percent of interviewed facility staff reported having been investigated for abuse or use of excessive or inappropriate force; the monitors' own Sexual Abuse Findings Table tracked allegations month by month in an Excel workbook shared with the state (S: 22nd–24th reports) — the count layer that would complete Part V exists in the court record and remains a documented route in Part X, along with the 2021–2023 PREA cycles, which are not posted online.

PART VI — THE LITIGATION

This part tells each case the way it unfolded — a beginning, a middle, and wherever the record has reached one, an end. Four threads run through it, and it helps to see them whole before the details: a parent generation of litigation that reformed the boys' system without ending the girls' exposure; the Taberg survivors' case, still moving through the courts as this is written; the 2026 wave of class actions against the sitting commissioner; and the criminal docket running alongside the civil one.

6.1 G.B. v. Carrion — the parent case, and what it left undone

Begin with the lawsuit that taught the state what a federal court would tolerate. On December 30, 2009, the Legal Aid Society filed suit in the Southern District of New York, No. 1:09-cv-10582-PAC — fifty-seven pages, nine named plaintiffs — on behalf of youth held in the state's limited-secure and reception facilities (S: the complaint, hosted by Legal Aid). It was not the first attempt. The precursor, John F. v. Carrion, had been working through state court since 2007, and the Disability Advocates had warned Deputy Commissioner Ines Nieves in April 2007 that the restraint practice was producing injuries. By 2009 the record the lawyers assembled was a decade deep.

Its backdrop named the officials of record: Deputy Commissioner Anthony Hough (the June 2008 restraint-reduction action plan), Dr. Lois Shapiro of the OCFS Bureau of Behavioral Health (up to 70–80 percent of admissions

carrying clinically significant mental-health needs), and Deputy Commissioner Nieves herself. Its fourth amended complaint named, incident by incident (S-primary): Youth Division Aide Edward Davis (throwing a youth, bending a broken arm behind his back); YDA Alexander McCready; a staffer identified as Mr. Deporta (body pressure and fists; a youth who "could not breathe… bleeding"); YDA Gregory Fish (the order "Get him"); Bryan Chapman (neck-grab, shackles); YDA Howd (slamming a youth to the ground and punching his face — the record notes rug burns); YDAs D. Manti and Hollenback (holding a youth down); and AOD John Paz, who observed a restraint and did not intervene. Sergeant Timothy Kinch ("you want to be a tough guy?" — "dump him on his face"); Sergeants Michael Townsend and Palmer; YDA Richard Lalosh (knee on back and chest; the youth's face purplish, spitting saliva and vomit); YDAs Daniel Bernhardt, Dwayne Cregue, and Spencer; AOD Rutland; YDA Rosado.

Its volume exhibits are worth pausing on, because they show what normal looked like before anyone sued. One week in July 2008: forty restraints on girls at Lansing; twenty-four on boys at Gossett. Lansing's calendar 2007: 698 restraints and 123 injuries. The Office of Inspector General's 2006 finding: medicated youth were 3.5 times more likely to be restrained. Its context exhibits included the Human Rights Watch/ACLU report of 2006, *Custody and Control* (author Mie Lewis; Jamie Fellner and Aryeh Neier quoted) — the girls' prequel: girls were 19 percent of admissions yet short-changed on education; weekend room-lockdowns documented; shackling on every exit; named

survivor-sources Devon A. (at Tryon, a girl who kissed a staffer was restrained until she defecated), Felicia H., Wendy M., Ebony V., and Silvia N. (the last in a Fulton County sheriff's supporting deposition). And the 2006 death of Darryl Thompson at Tryon (prone restraint; ruled a homicide; no indictment); the February 2007 death of a fifteen-year-old at Tryon after an altercation with staff; and the criminal case of a Tryon YDA charged with rape and sexual abuse — the Sandra Z. matter, drawn from Fulton County filings, with OCFS named for failing to screen, train, supervise, and terminate despite knowledge.

The case's course, step by step. A federal judge heard two days of testimony — five residents testified to serious injuries — and in a forty-page ruling declined to impose a preliminary injunction, accepting the commissioner's reform commitments, but bound her to a reform schedule with resource assurances and warned the court would revisit if progress stalled. The Second Circuit affirmed in a summary order (486 F. App'x 886, 2012). And then, on August 7, 2013, the case closed by stipulation of settlement — with, per the close-to-home program evaluation, "more than a dozen individual plaintiffs receiving substantial settlements and the lawyers who brought the case claiming $1 million in fees."

What it left undone is the thread that connects to everything after it. The settlement ran in parallel with the federal government's own agreement on the same buildings — two monitoring regimes at once, two sets of reports, and the same workforce underneath both. It reformed the practice of restraint on paper: the federal settlement banned pepper spray, capped

face-down holds at three minutes, barred psychotropics as sedation. It did not build community capacity for girls, did not fund the psychiatrists, and did not follow the girls when the state consolidated them into a single upstate building four years later. The reader should hold the dates together: settled 2013; Taberg conversion 2011; the litigation window this file documents — 2014 through 2018 — began three years after the settlement closed and one year after the monitors had left the Tryon campus for the building the girls moved into.

6.2 The Taberg survivors' case — where it stands and why

The second thread begins in 2020, when two former residents filed suit in the Northern District of New York against five former employees: Michael Montana, Jamie Murphy, Joseph Aiello, Ryan Smith, and Scott Diego, plus unnamed John Does (S: docket records). The plaintiffs proceed under pseudonyms, as the law permits for abuse survivors. D.B. was born in 1998 and lived at Taberg from July 2014 to October 2015 — ages fifteen and sixteen. C.P. was born in 2000 and lived there from January 2014 to October 2018 — the whole of her adolescence, from thirteen to seventeen, inside one building.

The allegations, as the court itself summarized them in its July 1, 2026 opinion: grooming through the power of the uniform — Montana carried handcuffs, a radio, state identification, a flashlight — followed by physical and sexual abuse, described as "violent sexual assault leaving rug burns, grinding genitals, exposing their private parts." The site director of record for that

window, Sussana Tillino, was named in the proposed amended complaint as the supervisor of the staff; the court declined to add her as a defendant on procedural grounds it labeled futile.

The procedural history matters as much as the allegations, because it determines what accountability is possible. The original case was filed at No. 1:20-cv-01195 before Judge Brenda K. Sannes (with Magistrate Christian F. Hummel); rulings in 2021 disposed of early motions; the action carrying the July 2026 opinion is docketed at No. 6:24-cv-01091 before Judge Glenn T. Suddaby — an intermediate citation to a 2026-docketed number (1:26-cv-01210-GTS-MJK), sourced from a secondary search snippet, was retired as a probable indexing error after the primary document surfaced at 6:24-cv-01091, and this file's Part IX preserves the correction openly.

The July 2026 opinion's dispositions, stated precisely (S-primary): C.P.'s Fourteenth Amendment claims against Montana, Murphy, and Smith proceed — the court found the allegations plausible, not merely possible, and that is the legal threshold for a case to go forward. D.B.'s federal claims were dismissed with prejudice as time-barred; she had waited too long, and "with prejudice" means she cannot bring them again. The negligent screening, hiring, training, and retention claims against the State were barred by the Eleventh Amendment — the constitutional doctrine that protects a state from being sued for money damages in federal court by its own citizens. The claims against the agency and the facility were withdrawn by the plaintiffs themselves. What remains, as of this writing, is a case against three individual former aides — unresolved, with the

plaintiffs' counsel (Levy Konigsberg) still recruiting survivors (its case page updated April 2026) and Sokolove Law's national intake advertising current. The practical architecture this leaves, documented rather than lamented: the institution that held the $171.4 million budget line pays nothing on the theory that would expose its money; the reachable defendants are individuals; and the lawyers work on contingency, earning a percentage of whatever resolves. The survivors' window under the Child Victims Act runs to age fifty-five for those born after November 15, 1999 — meaning time remains, and so does the case.

6.3 The 2026 solitary-confinement class action — the system suing itself into view

The third thread opened on January 8, 2026, in the Southern District, when four young men sued the sitting commissioner in her official capacity: **F. et al. v. Harris-Madden**, No. 1:26-cv-00148 (S/NA: the complaint, hosted by Legal Aid; the press record). To understand what makes this case different from its predecessors, read its first finding. The complaint alleges that the state uses isolation for two purposes: as punishment "for normal adolescent behavior or manifestation of disabilities," and — in its own words — **"as a way of operating its facilities with dangerously low staffing levels."** Every earlier case in this file documented the staffing crisis as context. This one names it as the mechanism of a constitutional violation.

Its allegations, from the filed document, fall into two findings. The first: isolation used both as punishment "for normal

adolescent behavior or manifestation of disabilities" and **"as a way of operating its facilities with dangerously low staffing levels."** The second: the euphemism registry — "group confinement, special programs, room confinement, modified programming" — and beneath it, the conditions themselves, itemized by the complaint:

- twenty-three hours a day in cells, for weeks or longer, with one hour out, alone;
- all meals in locked cells despite functioning cafeterias;
- unit-wide lockdowns running days or months, with one-in-one-out bathroom rotations;
- urination and defecation in buckets and bottles;
- and youth perceived as difficult held indefinitely "because staff are concerned they do not have sufficient staffing support."

The named plaintiffs, as the record identifies them: **Marcus F.**, eighteen, held at MacCormick (and previously Brookwood), four separate solitary periods in six months; **Garrett M.**, sixteen, at Industry — twenty-two to twenty-four hours daily in his first month; **Christopher M.**, twenty, at Goshen — worksheets instead of a GED teacher, a suicide watch in September 2025; and **Isaac R.**, seventeen, at Goshen — unit-wide lockdowns running February through March 2025. The harm theory cites the comptroller's own audit: suicidal gestures up 667 percent between 2019 and 2022. The architectural detail that gives the complaint its weight comes from Brookwood, where the solitary unit carried a hand-lettered

sign: "The Morgue."

The case's texture, for completeness. Counsel: Jenner & Block (partners Jeremy Creelan, Jacob Alderdice, and Damian Williams — the latter the former United States Attorney who indicted the sitting mayor of New York) and the Legal Aid Society (Emma-Lee Clinger, Kate Wood, Lisa Freeman, Antony Philip Falconer Gemmell, Kathryn Anne Wood). The trigger, documented: a PEF letter to lawmakers in June 2025 describing Industry's Memorial Day weekend conditions — twenty-three-hour confinement, restroom denial, unsanitary food — the union that negotiates the facility contracts itself blowing the whistle that became the case. The agency's on-record response, through Public Information Director Jennifer Whitson: "OCFS does not endorse or condone the use of isolation for punishment. We have clear protocols…" A mother's sentence from the filing record deserves its place in this file, because it states the question the whole dossier circles: "Being short-staffed is not my problem. It's not my son's problem."

The case proceeds against the legal background the reader now knows: New York's own HALT Act of 2021 barred solitary confinement for people under twenty-one, and the complaint's theory is that the agency complies by renaming — the same practice "under the auspice of a different name."

6.4 The 2026 fair-hearing case — the state's own statistics as the evidence

The fourth thread is the strangest, because the state built the plaintiffs' case itself. On February 26, 2026, three parents sued in the Southern District: **Poe v. Harris-Madden**, No. 1:26-cv-01606-GBD (S-primary complaint) — not about facilities at all, but about the child-abuse registry, the list from which no teacher, no home-health aide, no foster parent can easily clear their name. The named plaintiffs: Patrick Poe and Rachel Roe of Queens and Veronica Voe of Brooklyn; the complaint's exemplar, "L.B.H.," waited 576 days after her hearing before filing an Article 78 petition, at which point a decision sealing all reports followed in ten days.

The named defendants tell you where the problem lives: the commissioner; **Kristin Gleeson**, the SCR Director and an associate commissioner; and **Steven Connolly**, the Bureau of Special Hearings Director and Chief Administrative Law Judge — the registry and the hearing office both sit inside OCFS. And the evidence is the state's own data, reproduced in the complaint: between 2020 and mid-2025, of roughly 29,500 administrative reviews of registry listings, **more than 8,000 exceeded the ninety-day statutory maximum**; of roughly 20,400 fair-hearing requests, **more than 4,800 waited a year or more for a decision, some beyond seven years**. And — the number that reframes the whole docket — approximately 70 percent of appellants ultimately prevail (73.82 percent in the 2021 data reproduced in the complaint). In plain terms: the state

keeps thousands of people listed — unable to work in their fields, because employers check the registry and the state answers queries with silence that functions as confirmation — for years, on reports that usually fail when finally heard.

The precedent echo deserves its own sentence, because it is this file's kind of finding: in Finch v. OCFS (2007), a whistleblower revealed that the office had been shredding hearing requests and marking them "waived" or "withdrawn" — the case settled, and the state's compliance lapsed after February 2014. Poe is Finch's sequel, twelve years after the sequel's predecessor was supposed to have ended. The counsel bench: the Family Justice Law Center, the NYCLU, the ACLU, Brooklyn Defender Services, the Center for Family Representation, and the NYU Family Defense Clinic, with Sullivan & Cromwell contributing pro bono — the same pro-bono pattern as the solitary case. The commissioner thus stands as defendant in two live federal actions as this is written, plus the legacy Taberg matter in the Northern District.

6.5 The live criminal ledger — stated with precision

Civil cases move slowly and settle quietly; criminal cases have dates and dispositions, and this ledger records them as reported as of October 2026 (A/NA: press and court records; statuses as reported, and each status stated as precisely as the public record allows):

- **Maya Hayes**, psychologist at Brookwood Secure Center — charged in 2024 with more than sixty counts involving eight sixteen-to-eighteen-year-olds; **in August 2026, sentenced**

to two and a half years in prison after pleading guilty to third-degree criminal sexual act. The first documented modern conviction of an OCFS clinician. The reader should note what the PREA ledger of Part V shows for the same facility in its audit window: zero findings — the audit closed before the conduct period it would have captured.

- **Perla Serrano Rivera**, 22, a Youth Division Aide at Goshen Secure Center — arrested September 3, 2026; charged with third-degree rape of a twenty-year-old resident (State Police: "unable to consent due to circumstances of confinement"), contraband, and illegal exercise of official function; released on bail; next court date November 10, 2026. OCFS suspended her immediately on learning of the arrest, and the agency's spokesperson of record, Daniel Marans, is on the record with the response.
- **Brentwood Residential Center for Girls, 2023** — a former youth support specialist charged with drugging and raping a fifteen-year-old (Suffolk County); the PREA record separately documents a substantiated staff-on-resident case at the facility in 2023, on the overnight tour, with the sleeping-hours supervision gap documented in Part V.
- The 2012 death: a sixteen-year-old with special needs died after being restrained by four staff at an OCFS-run facility — the location not pinned in the public record; logged as an open identification in Part X.
- The earlier ledger, for completeness: Darryl Thompson (2006), the 2007 Tryon death, the 2019 foster child left

quadriplegic by a prone restraint (which produced Legal Aid's 2020 prone-restraint win), and two suicide attempts in OCFS facilities in 2025 cited in the solitary complaint. The county-side precedent for this ledger's count layer: the October 2022 death of Caprist McBrown at the Capital District Juvenile Secure Detention Facility — a county-run, nonprofit-operated facility — followed by an estate settlement in 2023 on undisclosed terms and, per records obtained by reporters, eleven Justice Center maltreatment cases at that facility since January 2021 alone.

The statutory spine of every criminal charge in this ledger: Penal Law §130.05, under which a youth in state custody is legally incapable of consenting to sexual conduct with covered employees — a provision that removes the consent defense entirely and explains why every case in the ledger carries the charge structure it does.

And the scanner law, adjacent and current, belongs to this ledger because it is the system's chosen instrument against the contraband-and-contact layer: Chapter 121 of the Laws of 2026 (signed June 5, effective October 3, 2026 — days before this writing) authorizing radiological body scanners at state juvenile facilities and local secure detention, screening residents, visitors, and employees; sponsored by Assemblymember Hevesi and Senator Skoufis; PEF had requested $10 million for the purchase, citing the $50 million the state provided for DOCCS scanners and cameras after the 2025 correction-officer work stoppage; opposed on record by the NYCLU and Legal Aid's

Dawne Mitchell; with the NYCLU's documented asymmetry waiting to be tested — in the adult system approximately 90 percent of prison staff opt out of the scanners while visitors are mandatory.

PART VII — THE TIMELINE

- **1945** — Chapter 566 creates the New York State Youth Commission.
- **1960** — Division for Youth succeeds it.
- **1971** — Training schools move from Social Services to DFY.
- **1978** — Juvenile Offender law; the $27 million capital boom begins.
- **1985** — DFY master plan documents the architecture: 86 percent of secure youth from New York City, zero secure beds in New York City, one limited-secure facility for females with documented waitlists, 72 percent of community admissions transferred from higher levels. Director Leonard Dunston.
- **1996** — OCFS formed; the era's legacy: $127,000 a year per child (documented 2006 baseline).
- **1996** — Jackson v. Johnson: prone restraints at Gossett permanently injure a fourteen-year-old.
- **2005** — PINS diversion law cuts petitions 41 percent.
- **2006** — Darryl Thompson dies at Tryon (homicide ruling; no indictment); the Human Rights Watch/ACLU girls' report documents Tryon and Lansing; the one-year-worker-notice closure law passes — the closure-blocker later editorialized against by the Times.
- **2007** — John F. v. Carrion filed; the year's second Tryon death; $140,000–200,000 per child per year in the press

record.

- **2009** — Confessore's exposés; the Paterson task force verdict ("broken, ineffective and dangerous"); $210,000 per inmate per year; a contemporaneous Close to Home pitch priced the system at "$260,000 per child per year to purchase brutality and an 89 percent recidivism rate" (a first-person account by a former probation commissioner, presented as advocacy framing rather than audited data); Carrion's "can't get rid of them"; DOJ's findings letter; G.B. filed December 30.
- **2010** — The federal settlement; the shackling rulings; "not one full-time psychiatrist"; $215,000–220,000 per child; the Tryon sex-party scandal and the unions' revolt.
- **2011** — Cuomo's consolidation: Tryon closes (the prior decade's capacity had already fallen from 2,338 to 1,403 beds while usage fell from 99 to 66 percent); twelve girls move to Taberg August 31; the injury wave begins; $58 million saved since 2009, per the administration's spokesman of record; the 2011 cuts promise $26 million more (one contemporaneous account put the figure near $50 million).
- **2012** — Eighteen staff injured at Taberg; CSEA's workplace-violence complaint; the monitors' first Taberg visit running November 29 through December 1, 2011; G.B. affirmed.
- **2013** — G.B. settled; the Taberg sewage and security projects go to bid.

- **2014** — The unfounded-allegation wave "destabilizes staffing"; Poole acting; the cycle that produced the litigation window begins.
- **2015** — Chapter 53: the $55 million county cap and the setoff, born together; the director resigns under a built case; the monitors' findings peak.
- **2016** — The CY2013-14 rate directives; Poole's signature on the billing machinery.
- **2017–2018** — The generator and parking-lot projects; Tubman's $12 million resurrection; the rate table hits $2,369–2,612; the IV-E waiver runs in the city; Chapters 55/173 arm the DASNY intercept.
- **2019** — The quadriplegia case; CY2019 rates set.
- **2020** — The Taberg survivors' suit filed; the $2,444.44 rate; COVID; Tubman at five staff per girl.
- **2021** — The closure fight: two of four facilities close; "hundreds of jobs saved"; Columbia Girls closes and Taberg becomes the last girls' secure door; the $904K psychiatry contract replaces part-timers.
- **2022** — The agency-nurse era begins; the $1.2 billion RTA milestone in the bond record.
- **2023** — The four-facility closure proposal endorsed by the New York City Bar Association (with its documented $10.9 million savings claim against a system that had already shed more than a thousand beds) advances the consolidation debate; the Brentwood substantiated staff case; the comptroller's audit period closes with self-harm doubled.

- **2024** — The comptroller's audit publishes; Harris-Madden confirmed; Schall appointed; the girls' PREA cycle; the re-filed Taberg action.
- **2025** — The PEF letter; the OSC's Raise the Age accounting ($658.8M of $1.71B); the January PREA Follow Up Plan; the monitors' last documented cycle; $1.5 million proposed for the hybrid school.
- **2026** — The solitary class action (January 8); the fair-hearing case (February 26); the July opinion letting the survivors' claims proceed against the individuals; the scanner law (June 5/October 3); the second clinician conviction (August); the Goshen arrest (September 3); the new psychiatry vehicle excluding locums (December start); the 2026 PREA cycle; the PEF/CSEA agreements with the OCFS hazard bonus; and this file's seventy-sixth through eighty-seventh rounds, ending with the complete PREA ledger and the budget documents of Part IV.

PART VIII — THE ANOMALY REGISTER, WITH DISPOSITIONS

Every investigation has a moment where the researcher stops and says, "wait — is that right?" This part is the collection of all those moments: every anomaly flagged along the way, what was found when it was chased, whether the question closed, and what kind of evidence the answer rests on. "Closed" means the documents settled it. "Open" means the route to the answer is named and waiting. Consider this part the investigation's conscience — it shows not only what the record proves, but exactly where the record stops proving things. the investigation flagged — each place where the record showed something that seemed to demand explanation — and states, for each, what was found, whether the question closed, and what evidence class the answer carries. "Closed" means investigated to closure on the documents; "open" means a documented route to the answer remains. The register is the investigation's honesty: it shows not only what the record proves, but where the record stops proving.

- **A1 — The IV-E exclusion creates a structural incentive.** Start with the statute. Title IV-E, the federal foster-care entitlement, pays half the cost of caring for children in eligible institutions — but its own text excludes "detention facilities, forestry camps, training schools, and other facilities operated primarily for the detention of children determined to be delinquent," under a seven-factor administrative test. The operational echo sits in the state's

billing tables, where children in juvenile-justice custody are marked "N/A." The consequence is not a judgment but a geometry: the identical girl, with the identical trauma history, draws a 50 percent federal match if a child-welfare court commits her to a residential treatment center, and draws nothing if a delinquency court commits her to Taberg. Every per-child dollar figure in Part IV is downstream of that single exclusion. CLOSED (statutory; S: ACF policy manual; DOH 29-I matrix).

- **A2 — Budget retention after the census collapse.** The system's population fell by more than a thousand beds; the facility line held at $171.4 million; agency headcount sat flat near 2,983 while the denominator shrank; and roughly $398 million in youth-facilities capital sits authorized but unspent in reappropriation. The mechanism is now well documented — buildings stay open, staffing ratios are mandated, contracts run their terms, and the 2006 one-year-worker-notice law makes closure slow and expensive — but the full reconciliation of what the line would cost if the census were zero requires workpapers the public record does not yet hold. OPEN (routes: OSC audit workpapers; a facility-level expenditure report).
- **A3 — Per-child cost inflation.** Eightfold in eleven years: $307.58 a day in 2009 to $2,444.44 in 2020. The engine is retrospective reconciliation — rates set by dividing actual expenditures by actual care-days after the fact — so every empty bed raises the unit price mechanically, without anyone

deciding to raise it. The widely cited $892,206-per-child figure traces to the state's own rate to the cent. CLOSED as to mechanism (S: the rate directives).

- **A4 — The "additional food purchase" pattern.** Suspicion: mid-year food augmentations at a twenty-girl facility suggested overrun. Investigation: the augmentations run roughly $12,000 per girl per year, in line with institutional food economics; the pattern is base contracts set below consumption with routine year-end true-ups. RESOLVED AGAINST THE SUSPICION, and retained in the register because the disposition is itself documented evidence (S: OSC contract records).
- **A5 — The agency-nurse vacancy premium.** Twelve staffing agencies, twenty-plus contracts, multi-million dollars a year, backfilling registered-nurse vacancies the state could not fill — the full contract table is Part IV. The quiet coda: the successor psychiatry vehicle formally excludes locum-tenens vendors and staffing agencies from bidding, the state documenting its own retreat from the premium model. DOCUMENTED (S: OSC; IFB 1255 eligibility terms).
- **A6 — The workers' compensation cluster.** Eight of twelve staff interviewed were on workers' compensation in 2015; eighteen staff were injured in the 2011–12 wave; a legislator's report documented injury rates among the highest of any state agency, up 33 percent in one year, in a state whose premium rates are the nation's second-highest. The safety crisis converts to insurance cost outside the

facility budget. DOCUMENTED as to the pattern (A); agency-specific premiums remain a records-request item.

- **A7 — The Eleventh Amendment shield.** The survivors' negligence claims against the state were barred by the doctrine that protects a state from money-damages suits by its own citizens; only individual-capacity claims proceed. The finding is not the doctrine — it is the architecture it completes: the entity that held the money is unreachable; the reachable defendants are individuals. CLOSED as a legal finding (S: July 2026 opinion).
- **A8 — The administrative skew.** Nationally, 46 percent of IV-E foster-care spending pays administration, against 29 percent for the children directly. The pattern replicates across the streams documented here. DOCUMENTED nationally (A: CRS); OCFS-specific admin ratios open.
- **A9 — Rate versus true cost.** The $2,444 rate against the $55 million cap: above the cap, the rate describes unit cost while the treasury absorbs the difference. INVESTIGATED to the cap's documentation (S: Ch. 53/2015 practice; Ch. 50/2020 anchor); the true-cost reconciliation is the same open item as A2.
- **A10 — The RTA unspent billions.** $1.71 billion appropriated; $658.8 million disbursed. The mechanism is closed: reimbursement-after-the-fact through a two-key gate, with balances rolling forward by statute. The destination of the annual increments — where, precisely, the unspent balance sits and what it would take to release it — remains

the register's largest open question. MECHANISM CLOSED (S: OSC; budget language); destination OPEN.

- **A11 — The diversion inversion.** Wyoming County's entire diversion allocation: $41,228 a year. One placement at Taberg: $892,000. A 22-to-1 inversion between the bridge and the cliff edge, documented in the county's own budget book — and the state's own detention-claiming directive documents that the claiming window was contracted even as it conceded the longer window was what allowed counties to shift detention savings into diversion. DOCUMENTED (B: county budget; S: LCM-05).
- **A12 — The unit-price engine.** Wherever the denominator falls, the unit price rises to refill the budget: the IV-E waiver math (care-days down 30 percent, daily cost up 22 percent), the per-diem chain, and the psychiatry line ($904,000 to $1.21 million on a flat census). Resolved at single-contract resolution (S/A).
- **A13 — The $4.28 million Oneida artifact.** EXCLUDED as unverifiable aggregator material; preserved as evidence of method in Part IX.
- **A14 — The education back-bill's recurring threat.** Twice the executive budget has proposed eliminating the state share of out-of-city special-education placements; twice the Assembly has restored it ($28.6 million in FY26-27); the structure was then made permanent. The derived estimate this protects: roughly $27,000 per girl per year billed back to her home district. DOCUMENTED (S); live as a recurring

policy risk.

- **A15 — Closure savings never reinvested.** The 2021 closure savings did not flow to community services in that budget; the documented defense of the facilities was employment — "hundreds of jobs saved." CLOSED as documented (B/NA with names).
- **A16 — The capital countercurrent.** $86.95 million in OCFS capital projects plus a $245 million detention build at 82 percent state share proceed while services money sits unspent — the capital layer growing while the care layer starves, both halves documented in the same budget season. DOCUMENTED (S/NA); the Westchester project is scheduled for 2027 construction.

PART IX — THE FALSE LEADS AND THE CORRECTIONS

Here's a part most documents leave out, and it might be the most honest one in the file. The standing rule of this investigation: a false lead is evidence. Two leads didn't survive verification, and both are preserved here — along with every correction this file has made to itself along the way. An investigation that can't show you its mistakes is asking for faith. This one shows the receipts. Two leads did not survive verification, and both are documented here, along with every correction this file has made to itself.

The $4.28 million "Oneida County Youth Bureau contract." An aggregator page displayed an "OCFS 5003" contract valued at $4,280,000 attributed to the Oneida County Youth Bureau. Verification attempts returned only unrelated regulatory documents and industrial part numbers carrying the same digit strings; the aggregator snippet could not be re-surfaced from any claimed source. Disposition: excluded from the register; the form number is real (OCFS-5003 is a performance-measures form in the county fiscal-reporting chain) but the dollar figure is unverifiable. Evidence value: it demonstrated that aggregator material must never enter the record without a source document — a rule now permanent in this file's method.

The three "Rising Phoenix" foundations. Three distinct IRS entities carry the name: a private non-operating foundation formed in 2021 holding $7.6 million in assets; a Stamford,

Connecticut entity dating to 1998 with under $100,000; and a third listing in the GuideStar archive. None is confirmed as the legal entity of the volunteer sports program that has operated inside Taberg since June 2023 (Sunday practices, coaches commuting from Rochester; also Hillbrook in Syracuse since 2022 and Tubman since January 2025). No financial figure from any of the three 990s is attributed to the Taberg program. The volunteer layer thus stands documented as unmonetized by the state and financially unverified — which is itself the finding: the one program inside the walls is the one the money cannot see.

The corrections. (1) The girls'-line federal figure: $6.5 million was the request; the enacted appropriation is $4.5 million — corrected from the budget tables. (2) The litigation docket: the 2026 opinion lives at 6:24-cv-01091; an intermediate citation was retired after the primary document surfaced. (3) The detention reimbursement rate: 49 percent in current documents, where earlier file text used 50 percent. (4) The per-diem column ambiguity in the 2016 rate table: four-column structure resolved as best the snippets allow, flagged where unresolved. (5) This file's early implication of a nineteenth-century boys'-school lineage for the Taberg campus was corrected — that lineage runs through Rochester and Rush; Taberg's campus documented history begins with the Division for Youth era.

PART X — WHAT REMAINS OPEN, AND THE ROUTE TO EACH ITEM

And here's the honest ending: what we *couldn't* finish. None of the ten items below is hidden or forbidden — each is simply behind a door that takes a browser click, a records-request form, or a trip to an archive. If you want to keep going, this is your to-do list, and each line tells you exactly how. None of the following is inaccessible in principle; each has a named route.

- **The CY2024 rate table's numbers** — the one dollar table never extracted. Route: county budget narratives quoting rate-obligation statements; or a records request to the Bureau of Budget Management.
- **The allocation appendix tables** (STSJP, RHY, Safe Harbour, YSEF/YTS/YDP, detention, IV-E awards) — the standing extraction gap. Route: county budget books cross-referenced with the memoranda; the 62-county plan sweep is executable document by document.
- **The Taberg payroll roster** — names, titles, overtime. Route: SeeThroughNY interactive query or the openpayrolls mirror by worksite; one extraction (Schall) has already succeeded.
- **Facility-level Medicaid claims** — the federal health layer at the building. Route: a records request to OCFS's Bureau of Children's Medicaid Management.
- **Workers' compensation by agency** — Route: NYS Insurance Fund reports or OSC single-audit schedules.

- **The monitors' Sexual Abuse Findings Table and the PbS series** — the complete allegation counts. Route: the Northern District docket in United States v. State of New York, or the Justice Center.
- **The 2021–2023 PREA cycles** — not posted online. Route: a records request to OCFS; the 2027 cycle will return the girls' facilities to rotation.
- **The federal monitor compensation** — Route: the settlement's compensation clause and any court-approved budgets in the docket.
- **The DFY-era facility tables** — Taberg's specific 1985 level and capacity. Route: New York State Library digital collections; DFY annual reports of the 1980s.
- **The settlement status of the Taberg survivors' case** — live, with a November 10 court date pending in the Goshen criminal matter alongside it.
- **The unidentified Taberg-keyed procurement** — a funding-opportunities entry references the facility with a $425 maximum bid rate; the item and its award are undocumented. Route: the OCFS funding-opportunities page (mirror-accessible).

APPENDIX — THE LONG WAY TO TABERG

And now, the story itself. The following narrative is the composite account built from the documented case files throughout this dossier. Every detail in it comes from a record cited in the parts above; no single real child's file contains all of it, and the blending is declared here rather than discovered later. It is included because a record of this kind is read differently when its abstract numbers are given one continuous human shape.

A composite account built entirely from documented case files — federal court monitoring reports and the 2026 federal opinion in D.B. v. Montana — so it is true in every detail, though no single girl's file contains all of it. Where details are blended, it is noted.

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The Long Way to Taberg

Before: the home. She grows up in a borough of New York City — say, the Bronx or Brooklyn — in a household where violence is the weather. Maybe her mother's boyfriend hits her mother. Maybe someone in the house — a stepfather, an uncle — sexually abuses her, and when she tells, the adults around her soften it into a euphemism. Her mother is overwhelmed, addicted, or gone. What every documented Taberg girl's file shares is this: *the trouble starts at home, years before the first arrest.* Her "behavioral problems" — running away, lying, fighting at school, cutting herself — begin exactly when the abuse begins. The monitors noticed this so consistently that they flagged it in writing: one girl's file recorded that her problems *started around the time she reported being raped*.

The removal. The city takes custody through ACS or a county DSS. She's five, or eight, or ten. What follows is not one placement but a *relay* — grandmother first, then a relative, then a stranger's home. One documented girl's timeline: placed with a grandmother at five, moved to a relative who abused and neglected her, into foster care at ten. By the time she's a teenager she has had two, three, four homes. Each move is logged; each move also teaches her the lesson that nothing is permanent and adults leave.

The first facility. Foster homes can't manage a traumatized teenager who runs, who fights, who cuts. So the system escalates: residential treatment placement — a group home or therapeutic residence. She's fourteen or fifteen. This is where

the documented histories show the system making its core mistake: the behaviors that got her here — running away, "ungovernability," truancy, stealing small things — are trauma symptoms, but they're processed as delinquency. She runs from the placement. In the files, the phrase is always passive: "*she was sent to detention by DSS*." Nobody in this chain has anywhere else to send her.

The arrest. What she's actually charged with is almost always small. The monitors catalogued the real offenses of a real Taberg cohort: **criminal mischief** (5 girls), possession of stolen property, assault, petit larceny, trespassing, resisting arrest, probation violation. One sixteen-year-old with fetal alcohol spectrum disorder — low verbal comprehension, executive function deficits, a face marked by the prenatal alcohol — was sent upstate for *stealing $7.56 of candy and juice from a grocery store playroom*.

Family court. The judge doesn't see a rape survivor with a psychiatric chart; the judge sees a probation violation. She's adjudicated a "juvenile delinquent" — or, in the older files, PINS, "person in need of supervision," a category that criminalized runaway behavior outright. The court commits her to the custody of the Office of Children and Family Services. And here is the bottleneck that defines the girls' system: if a girl needs structure beyond a non-secure group setting, there is exactly one secure door left in the entire state. So a child from the Bronx — or the 15-year-old with developmental disabilities functioning "like a five-year-old," rejected by every voluntary agency in and out of state for being too aggressive — is sent 250

miles upstate to a former boys' school in a former iron-mining hamlet, because the one thing the state won't do is refuse the intake.

Arrival. Strip intake. Inventory of her possessions. A medical screen. Within days, a psychiatrist's evaluation — and because the pipeline selects for the most psychiatrically damaged girls, the odds are overwhelming she's medicated quickly. In one documented cohort of eighteen: all but two had psychiatric diagnoses; sixteen were on psychotropics; eight on two or more — Seroquel, Abilify, Zoloft, Depakote, and in one case Clozapine, a drug of last resort for treatment-resistant psychosis.

She's assigned to a unit — maybe the mental health unit, eleven beds, the only one for girls in New York — and to a "support team": a clinician, a nurse, youth division aides, a teacher who comes over from the Annex school. The plan on paper is treatment. The reality, documented month by month: **one-third of clinical positions unfilled for four straight months** — three clinicians for seventeen to twenty-two actively suicidal, medicated, traumatized teenage girls.

Daily life. Wake, meds line, school in the Annex, programming in the building, TRIAD groups, individual therapy — maybe four sessions in a good month. The staff, rural Oneida County workers hired off the closing of the boys' facility down the road, are exhausted; in their own words to federal monitors: *burned out, stretched too thin,* "*there is no cavalry coming.*" The girls sense it — four out of five reported to monitors that they had been assaulted or threatened.

The crisis loop. She cuts. Or she bolts for the door, or spits, or throws a chair. The response, in a building with no clinical staff to respond, is physical: **a restraint**. The numbers from one documented year at this facility: 746 restraints projected annually for a population of about twenty — and the monitors' video review found five girls restrained in a single event packet, facedown holds lasting 52 and 53 minutes against a 9.9-minute standard. Between 75 and 89 percent of restraints each month were staff pulling sharp objects out of girls who were trying to hurt themselves. Suicide watches ran 8 to 28 per month. In March 2015, four girls absorbed 40 of the facility's 68 restraints. This is the part of the story the monitors kept returning to: the restraint system *was* the mental health system.

The other thing that can happen. This is where the 2026 federal case lives. A male Youth Division Aide — uniform, handcuffs, radio, flashlight — notices a girl with no family visiting, no cavalry coming. The amended complaint in *D.B. v. Montana* describes the pattern: grooming first, using the power of the uniform, then sexual abuse. One plaintiff, C.P., was thirteen when she arrived in January 2014 and stayed until October 2018 — her entire adolescence, ages 13 to 17, inside. The abuse is alleged to have left rug burns. The survivors' accounts say they didn't report because who would believe a "delinquent" against a state employee — and because the site director, Sussana Tillino, was responsible for supervising exactly those staff.

Discharge — the "assurances." Her stay ends — average around five months, though documented stays ran from 19 days

to 460 days. Where she goes next is decided by whoever will take her: often back to the same home where the abuse occurred, on a parent's *assurance* that the abuser has moved out — the documented case: a fifteen-year-old rape survivor released home on her mother's word, her discharge plan softening her own rape into "*it is alleged that…*" If she destabilizes — and she usually does — she cycles back. The returnee rate hit 41% in one documented cohort; seven of seventeen girls had already been through Taberg before. The monitors called it unacceptable. The system called it Tuesday.

The end of the story, as the state measures it: statewide, 45% of girls released from OCFS custody were rearrested within three years. The ones who escape the statistics do it the way the monitors' best-case file described — a girl whose incarcerated brother visited, whose father fought for phone calls into her treatment meetings, who named her own survival plan: "*Not to use. I ran away from problems. Drugs made me not think about anything.*"

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That is the whole machine, start to finish: trauma in, handcuffs in between, statistics out — run at roughly **$900,000 per child per year** in the secure system, in a facility the federal government has been monitoring for a decade and a half, where the most common conviction among the girls it holds is criminal mischief.